

1/96

File No.: EXP202201608

Content

BACKGROUND

.....
2

FIRST: Submission of the claim

.....
2

SECOND: Evidence obtained for admissibility analysis.

.....
3

THIRD: Transfer of the claim.

.....
3

FOURTH: Admission for processing on 29/04/2022

.....
13

FIFTH: Inquiry to the commercial report of the defendant company

.....
13

SIXTH: Registered background of the defendant in the AEPD SIGRID case management application

.....
13

SEVENTH: Agreement to initiate sanctioning procedure, dated 5/06/2023.

.....
14

EIGHTH: Defenses of the defendant dated 27/06/2023

.....
14

NINTH: First extension of defenses, dated 11/10/2023

.....
26

TENTH: Second extension of defenses, dated 21/11/2023

.....
30

ELEVENTH: Issuance of resolution proposal dated 12/03/2024.

.....
32

TWELFTH: Defenses to the resolution proposal submitted on 8/04/2024.

.....
32

PROVEN FACTS

.....
38

LEGAL GROUNDS

.....
48

I Competence

.....
48

II Preliminary issues

.....
49

III On the processing of health data

.....
52

IV On the defenses to the resolution proposal

.....
59

V Unfulfilled obligation of art. 9 GDPR

.....
63

VI Unfulfilled obligation of art. 6.1 GDPR

.....
70

VII Unfulfilled obligation of art. 14 of the GDPR

.....
78

VIII Classification and qualification of the infringements

.....
84

IX Determination of the sanction

.....
85

RESOLVES:

.....
92

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28001 – Madrid

sedeagpd.gob.es

2/96

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Submission of the complaint

A.A.A. (hereinafter, the complainant) submitted a complaint to the Spanish Agency for Data Protection on 29/01/2022. The complaint is directed against GSMA LIMITED with NIF N4004237F (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that workers from the companies that are to perform work at the FIRA de Barcelona during the MOBILE WORLD CONGRESS (MWC 2022) have received instructions from the organizing company, GSMA, and FIRA DE BARCELONA, requiring them to register in a software application to gain access to the venue. In this regard, the respondent sent an email on 20/01/2022 to

the MWC 2022 suppliers, informing them that their workers must upload their COVID passport or equivalent to the system.

The complainant indicates that neither the respondent nor FIRA is authorized to request health information regarding vaccination or health status from third parties, and that failure to provide such information would result in being unable to enter and, therefore, unable to perform their work.

Along with the complaint, two copies of emails are provided:

1) Email dated 20/01/2022, from a person with a FIRA de Barcelona domain (hereinafter FIRA), addressed to suppliers, subject: "instructions for supplier registration FIRA de Barcelona for MWC 2022," stating, "through this email we want to inform you that the accreditation system for MWC22 is now active for all suppliers of FIRA BARCELONA," "with the same digital pass platform as last year," therefore:

- "There will be a web system where each supplier will have an account created by FIRA, where they must self-manage their passes," for this, the details of the person who will manage the account must be sent to a FIRA email address.

This person will be the contact for "the passes of all employees registered in the system in the name of their company."

There is a section referring to "COVID passport and antigen tests," which states that: "when your workers log in for the first time, they will have to create a password, and then upload one of the following documents for validation:

- COVID-19 vaccination certificate
- COVID-19 recovery certificate
- Negative valid COVID-19 test, conducted in the last 72 hours during any of the periods (setup, event & dismantling).

2) Email dated 21/01/2022, sent by a person from an address with the domain "firabarcelona.com," addressed to a team with the same domain, subject: "GV access anticipation MWC." It informs about access through gate 4 to the Gran Vía venue, between 23/01 and 07/02, for different groups of people, visits, and vehicles, including FIRA employees, collaborators, and holders of permanent and annual access to FIRA venues. It refers to "health control to access MWC stands under construction," which identifies, "by presenting a COVID passport or, failing that, a negative COVID test certified by an authorized laboratory."

"Starting from February 8, security perimeters will be advanced, and the health and access measures established by GSMA for the entire Gran Vía venue will be adopted. These are similar to those of the previous edition; documentation must be uploaded to a digital platform to obtain access passes to the event during all its periods until March 8. We will receive detailed information on how to manage the MWC pass."

SECOND: Evidence obtained for admissibility analysis.

The AEPD collected the following evidence:

- GSMA/MWC BARCELONA 2022 PRIVACY POLICY - Last updated 29/04/2021, which indicates that it applies to the processing of personal data of participants in the Congress.

- Privacy policy of FIRA DE BARCELONA and its affiliated companies, obtained from its website.

Employees of suppliers are not mentioned.

THIRD: Transfer of the complaint.

In accordance with Article 65.4 of Organic Law 3/2018, of 5/12, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGD), the complaint was transferred to GSMC EVENT PROJECT MANAGEMENT SL - B64828973, a subsidiary of the respondent, for it to analyze and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, regarding the complaint stating that workers from companies performing work during the Mobile World Congress (MWC) 2022 at the Fira de Barcelona venue must obtain accreditations to access the venue, providing health data (COVID-19), notifying of the emails from the first background.

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The transfer that was carried out in accordance with the provisions established in Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not collected by the responsible party within the deadline for availability, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP, on the date of 5/03/2022.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on the date of 21/03/2022. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on how to access such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

- On 25/04/2022, GSMC EVENT PROJECT MANAGEMENT, S.L responds to the following questions:

1. "Name and surname or the corporate name of the data controller of health data related to the COVID passport and antigen tests requested in the context of the Mobile World Congress Barcelona 2022, as well as the NIF and contact address of said controller."

It responds that "The data controller of personal data related to attendees of MWC22, including health data that, exceptionally, due to COVID19, was requested during MWC22, is the entity: GSMA Ltd. Armour Yards, 165 Ottley Drive, Suite 203 Atlanta, GA, 30324 USA EIN (Employer Identification Number): 20-4991061. It also provides its contact email."

2. "If the controller is established outside the EEA, the postal address of its representative in the European Union."

It responds that: "GSMA Ltd. (hereinafter, 'GSMA' or 'Organization') is established in the United States. GSMC is a Spanish company, 100% owned by GSMA, created specifically to provide services related to the management of GSMA events, including the MWC in Barcelona (for example, translation services, accommodations, etc.). The data processing carried out by GSMA is inextricably linked to the data processing carried out by GSMC. Therefore, GSMA processes personal data in the context of activities of an establishment in the European Union and is subject to Regulation (EU) 2016/679 of the European Parliament and of the Council of 27/04/2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter, 'General Data Protection Regulation' or 'GDPR') under Article 3.1 thereof, and therefore, the establishment of a representative in the European Union is not required."

3. "Indicate whether there is any relationship of controller or joint controller and processor between GSMA LTD, GSMA Event Project Management, S.L. and FIRA."

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5/96

INTERNATIONAL OF BARCELONA, within the framework of the Mobile World Congress Barcelona 2022."

Responds:

GSMA Ltd. is the data controller of the data of the attendees at MWC22. GSMA does not hold the status of data controller or data processor in relation to the data that is the subject of this claim.

FIRA holds the status of main contractor and, in many cases, exclusive contractor for many of the services and supplies that must be provided within the framework of the MWC. Consequently, within this "client - supplier" relationship, from the perspective of personal data protection regulations, FIRA acts as a data processor on behalf of and for the account of GSMA Ltd., which acts as the data controller, for which purpose both parties have signed the corresponding data processing agreement under the provisions of Article 28 of the GDPR."

"It is necessary to introduce a fourth agent, not mentioned in the claim, whose involvement in the organization of MWC22 has been vital to ensure the health and safety of all those involved in the MWC

following the emergence of COVID-19 (hereinafter, "COVID-19" or "the pandemic"). We refer to the company QUIRONPREVENCIÓN (QP hereinafter). QP, the medical services provider for GSMA for the MWC, is considered a sub-processor of personal data by virtue of the data processing agreement signed with FIRA. The reason GSMA partnered with a leading medical services provider in its sector was to ensure that such an important, unique, and complex event from an organizational perspective as the MWC was carried out with the highest safety measures, considering that this company was the one applying the necessary health controls during the pandemic at the very airport of Barcelona, in addition to other previous fairs, such as FITUR. The decision to engage QP was consensual, with the Public Health Department of the Spanish Ministry of Health, with whom GSMA held multiple working and coordination meetings in the framework of the preparation for MWC22. In fact, QUIRONPREVENCIÓN was an entity accredited by the Public Health Department to report any potential positive cases occurring during the MWC."

4. "The legal basis that enables the processing of the aforementioned health data and the circumstance that lifts the prohibition on processing special categories of data, according to Article 9 of the GDPR."

Responds that they will conduct an analysis of how the situation was on previous dates.

On 1/12/2021, GSMA officially presented its HEALTH AND SAFETY PLAN FOR MWC22 IN BARCELONA (the "Plan"). Press releases can be consulted at the URLs ***URL.1 and ***URL.2."

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6/96

Clicking on the first link leads to another GSMA page dated 12/1/2021, which is a news article informing about the security plan for the 2022 event, where health and safety will be the priority, mentioning, among others, attendees or visitors, and workers on site, for all of whom "must certify their vaccination status, provide a negative test or a COVID-19 recovery certification, to gain access to the venue, just as in the 2021 edition, the proof of compliance with the protocols will be stored and displayed in the official event app."

It is also reported that QUIRONPREVENCIÓN will be the medical partner validating these documents. The defendant states that the HEALTH AND SAFETY PLAN presented is an update of the plan submitted in March 2021, which was developed in coordination with the Catalan health authorities responsible for the regulations governing MWC21, including the Department of Business and Knowledge of the Generalitat de Catalunya, and the TECHNICAL COMMISSION OF PROCICAT that approved it - a committee attached to the Department of Interior of the Generalitat de Catalunya that manages the pandemic response in Catalonia within the framework of the Territorial Civil Protection Plan of the Department of Interior of the Generalitat de Catalunya.

- The Plan also complied with the guidelines and recommendations for event organizers outlined in the SECTORIAL PLAN FOR FAIRS AND CONGRESSES.

- The Plan involves all participants in the MWC, as it was designed with a tiered approach that allowed for the creation of a safe environment for staff, workers, exhibitors, visitors, suppliers, partners, and the local community. These tiers included frequent testing, contact tracing, contactless environments, catering renewal, occupancy control, improvements in facility infrastructure, medical personnel, and personal commitments such as maintaining social distance, as well as the collection of COVID data by GSMA, particularly data related to vaccination certificates; recovery certificates or negative diagnostic test results. Additionally, the Plan was based on the SECURITY AND PREVENTION PROTOCOL AGAINST COVID-19 that was being implemented by FIRA at that time.

- During the months leading up to the MWC22, GSMA had to take into account, almost weekly, the various resolutions issued not only by the Departament de Salut of the Generalitat de Catalunya but also by the Spanish Ministry of Health itself, with whom it held periodic coordination meetings, including with the Security Forces and Corps.

On the legal basis that enables data processing, the defendant states that Article 6.1.c) of the GDPR, "necessary for compliance with a legal obligation applicable to the data controller."

In execution of the Plan, "GSMA must, therefore, comply with the mandate of the Catalan authorities regarding data collection to minimize the risk of contagion for event attendees."

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7/96

"By virtue of the Public Health Law 18/2009 of the Autonomous Community of Catalonia, health authorities may interfere in private activities for the purpose of protecting the health of citizens and preventing diseases. GSMA considers the Plan as such an intervention agreed upon and approved by the Catalan authorities as a mandate to implement the aforementioned measures, including the collection of COVID Data."

"In the event that the legal basis indicated above does not apply, GSMA would rely on its obligation to protect the vital interest of event attendees (including workers and suppliers) under Article 6.1 d) of the GDPR, protection of the vital interest of attendees as the legal basis for the processing of their data." Recital 46 of the GDPR establishes the possibility of processing data based on this legal basis in the context of pandemic monitoring, understanding it as "its obligation to protect the vital interest of event attendees—including workers."

- Article 9.2 g) of the GDPR, essential public interest.

It responds that: "the objective of the Organization is to create, in coordination with health authorities, a safe environment for staff, workers, exhibitors, visitors, suppliers, partners, and the local community, taking into account the characteristics of the event and the pandemic situation. The same legislation cited in the previous paragraphs would apply to justify the processing of health data under Article 9.2 g) of the GDPR relating to the protection of essential public interest."

5. "The purpose of the processing"

It responds that the purpose of the processing of health data by QUIRONPREVENCIÓN was limited to verifying "whether the information contained in the health certificates met the access requirements to the event established by the Organization, although the true purpose of processing this data, from GSMA's perspective, was none other than to protect the attendees of MWC22 and its workers, ensuring a safe and healthy environment for all of them, and ultimately, to prevent the spread of the pandemic as a serious cross-border threat to public health in the manner required according to the agreed and approved Plan by health authorities."

6. "The adequate safeguards implemented for the protection of the rights and freedoms of individuals, including the security measures adopted to protect the confidentiality of personal data."

It responded that "a certificate regarding the security measures applied by QUIRONPREVENCIÓN is attached as ANNEX NUMBER 2."

This consists of a document from QP, signed on 20/04/2022 by the Data Protection Committee, certifying compliance with Data Protection regulations in all data processing they carry out for the development of the corporate purpose and adopting the necessary legal, technical, and organizational measures to ensure the security of the aforementioned processing. It does not refer to the specific processing commissioned, nor does it relate any participant in the matter.

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8/96

The respondent adds that: "Regarding the processing of COVID Data, neither GSMA nor FIRA have had access to this data. This data was collected directly by QUIRONPREVENCIÓN, which analyzed it and confirmed whether the individual was 'FIT' or 'UNFIT' for the purpose of accessing the event."

7. "The categories of data subjects (workers, clients, users, etc.) and the information provided regarding the processing of this health data."

It responds that: "The categories of data subjects are all those individuals who, for any reason, needed to access the perimeter of the event venue, namely, attendees, exhibitors, and suppliers (contractors

and subcontractors). Regarding the information provided about the processing of this data, and in relation to the data processing subject to this complaint, it is provided by the supplier/employer directly as GSMA does not have direct contact with the workers. The contract between GSMA and the supplier requires the supplier to comply with applicable data protection laws, including compliance with the requirements of transparency and legality for the purpose of transferring the data of its workers to GSMA or its data processors, including the provision of GSMA's privacy policy (the specific privacy policy is provided to the supplier) to its workers whose data is provided to GSMA. The privacy policy complies with the requirements established in the GDPR and includes information related to the processing of health data of attendees, including the processing of data provided by third parties, specifically referencing the case at hand, particularly the circumstances under which the supplier provides the worker's data to GSMA."

8. "If applicable, order that contemplates the health measure for the containment and control of the epidemic caused by the SARS CoV-2 virus, as well as justification of the necessity and proportionality of the application of this measure to the event."

It responded that "The mandate has been received by GSMA through the Plan, which was developed in collaboration with (and approved by) the Catalan authorities," as previously explained. The competent authorities considered at the time that the measures approved in the Plan were appropriate for managing the pandemic at the time the event was held. Furthermore, the justification for the necessity and proportionality of applying these access requirements to the event takes into account three reasons, largely related to the very nature of the MWC:

a. The first of these is the international character of the Congress. In the MWC22 edition, a total of 183 countries out of the 195 in the world were represented. Due to the health crisis caused by COVID-19 and the temporary restrictions on non-essential travel from third countries—some of which were at risk or even very high risk—GSMA had to adapt its Health and Safety Plan for the event to the provisions of Order INT/657/2020, of 17/07, which modifies the criteria for the application of a temporary restriction on non-essential travel from third countries to the European Union and associated Schengen countries for reasons of public order and public health due to the health crisis caused by COVID-19, whose criteria were being modified monthly to respond to a change in circumstances or new recommendations in the EU, as well as to the Resolution of June 4. (It is unknown to which resolution the citation refers).

C/ Jorge Juan, 6

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28001 – Madrid

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9/96

b. The second aspect is the large-scale nature of the Congress. The MWC22 event hosted a total of 61,000 people over the four days of the event, which represents a very high volume of attendees that, in the context of a pandemic and considering the high concentration of individuals in the same space, requires the adoption of measures that ensure all attendees possess the necessary health credentials and minimize the probabilities of contagion and/or virus spread.

c. The third aspect is for public health reasons closely related to the context and evolution of the pandemic in the days leading up to the MWC, and the mortality and contagion indicators in the months prior to the MWC were "anything but hopeful and justified the adoption of such measures, which we endorse."

9. "Report whether only the exhibition of the certificate or negative test result from an antigen test is requested, or if the information contained in them is recorded or stored, and in this case, justification for the necessity of its registration and the location of the servers where it is stored."

It was responded that: "As indicated, attendees at MWC22 send ("upload") their health certificates directly to the QUIRONPREVENCIÓN platform, where they are recorded and stored on their own servers, located in Spanish territory, until the last day of the event dismantling, at which point they are destroyed." The justification for the registration and storage of this data is very simple.

QUIRONPREVENCIÓN needs to access this data in advance and remotely (as thousands of attendees, including workers, must be accredited) to perform its verification function, necessary for

attendees to obtain the pass to access the venue (thus complying with the requirements of the Plan). Additionally, these certificates must be retained in case a positive case arises during the event, which would invalidate the pass and be communicated to the Health Authorities through the appropriate channels. The management of access to an event of this nature requires the retention of data to facilitate access to the event on the days of its celebration and to avoid crowds at the entrance. COVID data was only retained during the event period and was deleted once the dismantling of the event was completed. The MWC concluded on 03/03/2022, and QUIRONPREVENCIÓN destroyed all data on 08/03/2022, which was the date of completion of the dismantling.

10. "If applicable, detail the procedure established for workers to register the documentation on the platform." It was responded that: "The procedure is as follows:

Step 1. The provider registers each of its workers on the GSMA platform.

Step 2. Once registered, each worker receives a confirmation email from GSMA with a link that facilitates access to their account.

Step 3. Each worker directly provides the COVID Information through the QUIRONPREVENCIÓN platform.

Step 4. Each worker receives a confirmation/rejection email for the completion of the registration process on the GSMA platform."

11. "Recipients of the registered or stored information."

It was responded that: "The recipient of the registered or stored health data is QUIRONPREVENCIÓN since it is the entity that, according to its status as a sub-processor, must verify whether the form and content of the health certificates comply with the access criteria established by the Organization. Neither GSMA nor FIRA 'have had access to the registered health data.'"

12. "Report on whether international transfers are made and, if so, identification of the data importers, destination country of the transfer, and if there is, adequacy decision or appropriate safeguards regarding international data transfers."

It was responded that: "There is no international data transfer. Health data is stored on the servers that QUIRONPREVENCIÓN has in Spain."

13. "The Impact Assessment carried out or reasons why it has not been carried out."

It was responded that it is attached as ANNEX NUMBER 3, in which the title expressly refers to the treatment of COVID-19 related to health data of "the employees of GSMA's providers" who "provide the services agreed upon between GSMA and its providers" for the celebration of MWC Barcelona 2022, mentioning that the data is uploaded to "a platform provided by GSMA's sub-processor, QUIRON PREVENCIÓN (QP)," and that no other party besides QP has access to that platform," reiterating that the purpose is to ensure secure access. It is noted that the date of the DPIA indicated at the end of the document is 22/02/2022, when the data of the employees for access to the assembly facilities, according to the email provided by the complainant dated 20 and 21/01/2022, indicated that the collection of COVID-19 health data would be from 23/01/2022 until 08/03/2022. "The processing activities are in accordance with the measures implemented by the GSMA Plan 'Committed Community' which has been developed and approved by Catalan and Spanish authorities, including health authorities."

In the section of what is the source of the data?:

"The employers, that is, the providers of GSMA; and the interested parties directly."

In "What is the nature of the relationship with the interested parties?", it is indicated that "the interested parties are the employees of the committed GSMA providers, or linked with FIRA or with GSMA to provide services at the MWC event venue."

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11/96

In a "description of the treatment," it is specified in the data collection process that:

"The COVID information is uploaded to the platform directly by the employees."

The registration process is as explained in the previous point 10, adding that it is indicated that:

"GSMA is only notified about whether the person is qualified to access the venue or not."

It is indicated that health data is of special category and that employees, due to the power imbalance in the employment contractual relationship, constitute a vulnerable group.

"- What do you want to achieve?"

"Comply with the plan agreed with the Spanish/Catalan health authorities to ensure that the MWC event is a safe COVID-19 environment for all attendees. Comply with the sectoral requirements regarding the organization of Congresses, particularly the Catalan COVID Action Plans for Exhibition and Congress Venues (Congress Action Plan and Exhibition Venue Action Plan)."

"Is it appropriate to consult other internal stakeholders, and if so, whom?"

"The processing of COVID Information is mandatory within the framework of the plan that has been drafted in coordination with the Catalan health authorities, the Department of Business and Knowledge of the Generalitat de Catalunya, PROCICAT (Commission of the Ministry of the Interior of the Generalitat de Catalunya), as well as the Public Health Agency of Barcelona and the Department of Public Health of the Spanish Health System. The plan has been approved by PROCICAT."

-It affects 11,970 people.

-It is indicated in the "context of treatment" that the relationship with the stakeholders is that they are employees of GSMA's suppliers and provide their services at the MWC event venue. Regarding "how much control will they have?", it is indicated that: "Individuals are informed about their rights concerning the processing through the Privacy Notice provided by their employer on behalf of GSMA. According to the Terms and Conditions of Contractor Registration between GSMA and the suppliers, the suppliers contractually commit to comply with all obligations of transparency and legality before sharing employee data with GSMA, including providing the GSMA Privacy Notice to all relevant employees."

In the same section, it is indicated: "Would you expect you to use their data in this way?"

"Yes. See the previous answer regarding how individuals were informed about the processing activities. Additionally, the COVID-19 measures implemented at the MWC are in line with the measures taken at similar events, as they are agreed upon with the health authorities that establish these requirements in general (for example, similar measures would be required to access other crowded spaces)."

Also in the "context of treatment," it states: "Are there prior concerns about this type of treatment or security failures?"

"No. Any measures implemented by GSMA (including the processing of COVID information) are discussed and agreed upon with the relevant health authorities."

QUIRONPREVENCIÓN has security certifications (ISO 27001:2013 certification and certification according to the Spanish National Security Scheme).

In section 4 "Assessment of necessity and proportionality," it refers to the bases of legitimacy for data processing, including Article 6.1 c):

"The Committed Community Plan (CCP) was developed in collaboration with the Catalan health authorities and approved by PROCICAT, and aligns with the COVID Action Plans for Catalonia for Fairs and Congresses applicable to GSMA and FIRA. The Committed Community Plan included the requirement to request COVID information."

It then reiterates the citation of Law 18/2009, of 22/10, on public health, in the context of the Autonomous Community of Catalonia, as a norm that can affect citizens' health to prevent diseases, and GSMA considers the CCP constitutes that authorization, as it was approved by the Catalan health authorities as a mandate to implement COVID-19 measures at the MWC to prevent the spread of COVID-19, including the collection of COVID information that is required by and to comply with the instructions of the health authorities.

It also cites as a legitimizing basis, apart from Article 6.1.c), Article 6.1.d), and Article 9.2.g) of the GDPR. It specifies this 9.2.g) in that "there is a substantial public interest based on Union law or Spanish law. GSMA was required by law to comply with the health instructions of the health authorities and to develop and comply with the Committed Community Plan."

In the same section, it responds to: "Can the same result be achieved with the processing of fewer data?" "How is transparency provided to the stakeholders?" reiterating that the privacy notice was

provided by their employees on behalf of GSMA before their data was shared by the employer with GSMA..." "How is the exercise of rights by the stakeholders facilitated?" indicating, according to the "privacy notice."

-In step 5, "risk assessment identification, evaluation, and risk mitigation," there is a table with five columns titled:

"Source of risk and probable consequences"

"Severity of the risk"

"Probability of the risk"

"Overall risk."

Among others, this table includes:

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13/96

- "Not providing sufficient information to individuals," GSMA ensures that employees of the suppliers are provided with the Privacy Notice before their data is shared by their employer with GSMA.

According to the Contractor Registration Terms and Conditions, suppliers are contractually obligated to comply with all transparency and legality obligations before sharing their employees' data with GSMA, including providing the GSMA Privacy Notice to all employees prior to sharing."

It is categorized as: high in severity of risk, remote in probability, and overall risk: low. Information about rights is also included in the Privacy policy."

"The rights of the data subjects and how they can be exercised are detailed in the Privacy Communication."

In the risk assessment, it is indicated: - as having a "remote" probability, that of a complaint regarding the decision to deny access to a supplier's

employee based on COVID information, despite being categorized as "high severity of risk," it is

classified as "overall risk: low," and in mitigation measures, it is indicated that "GSMA ensures a

consistent approach to determine whether a person can be granted entry to the MWC event venue

based on COVID-19 information and in light of the Plan. Reporting levels were low at MWC 21,"

concluding that individuals "have three options: vaccination certificate, valid negative PCR test within 72 hours, or medical certificate of recovery from the illness."

- In "errors in complying with requests from data subjects," it is indicated that the rights of individuals are included in the "privacy notice" provided to employees of the suppliers, with "overall risk low."

At no point in the DPIA is the intervention of the DPO mentioned, but in the section "link to advice from DPO (if any)" it states N/A. It is also noted that the affected parties were not consulted.

14. "The decision made regarding this complaint." It states that no decision has been made regarding this complaint since all actions taken by GSMA in the area of personal data protection have shown the

utmost respect for current obligations, and it does not consider that any incident has occurred, therefore it has not adopted any measures.

FOURTH: Admission of the complaint on 29/04/2022

On 29/04/2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant

was admitted for processing.

FIFTH: Inquiry into the commercial report of the complained entity

In the inquiry conducted in the "monitoring report of the non-commercial entity GSMA LTD," with the

NIF stated in this agreement, as a non-resident entity, it is recorded in the table "estimated financial

magnitudes" a "net turnover amount": for 2021 of XXXXXXXX, and for the previous year:

XXXXXXXXXX.

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14/96

SIXTH: Registered background of the complained entity in the AEPD SIGRID case management

application

It is recorded in the SIGRID registry, the information management system of the AEPD, that the complained entity was sanctioned in procedure EXP202100603, PS/00553/2021, with the imposition of a monetary fine of 200,000 euros in resolution dated 24/02/2023, for a violation of Article 35 of the GDPR, classified under Article 83.4 a) of the GDPR, and for prescription purposes, qualified as serious under Article 73.t) of the LOPDGDD, noting that an appeal was filed, which was dismissed on 28/04/2023.

SEVENTH: Agreement to initiate sanctioning procedure, dated 5/06/2023.

On 5/06/2023, the Director of the AEPD agreed:

- "TO INITIATE SANCTIONING PROCEDURE against GSMA LIMITED, with NIF N4004237F, for the alleged violation of the GDPR, articles:

- 14 of the GDPR, in accordance with Article 83.5.b), classified as very serious for prescription purposes under Article 72.1.h) of the LOPDGDD, with a fine of 100,000 euros.

- 9.2 of the GDPR, in accordance with Article 83.5.a), classified as very serious for prescription purposes under Article 72.1.e) of the LOPDGDD, with a fine of 300,000 euros.

- 6.1 of the GDPR, in accordance with Article 83.5.a), classified as very serious for prescription purposes under Article 72.1.b) of the LOPDGDD, with a fine of 200,000 euros."

EIGHTH: Allegations of the complained entity dated 27/06/2023

On 27/06/2023, the complained entity made the following allegations:

- Having been notified of the initiation agreement also to its subsidiary GSMC, it reiterates the distinction between the complained and accused entity and GSMC, which has no role in the data processing of MWC Barcelona.

1- It states the number of attendees in the years 2019 (110,000) and 2023 (88,500) and that it occupies a space of 240,000 square meters, equivalent to about forty football fields, at the "FIRA de Gran Vía" venue, having canceled the February 2020 edition due to the virus's spread when the pandemic had not yet been declared. It states that this demonstrates the prudence criteria required by health legislation and the preventive measures that govern its actions, limiting itself to complying with public health regulations.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/96

2- Regarding FIRA DE BARCELONA, it clarifies that it is a public entity of an associative nature and consorcial character for promotion, integrated by the Generalitat, the City Council of Barcelona, and the Official Chamber of Commerce, Industry, and Navigation of Barcelona. From the perspective of regulations regarding data protection, FIRA and QUIRONPREVENCIÓN (hereinafter QP) - as a sub-processor - signed the corresponding contract for the provision of health services for MWC22 treatment. FIRA acts as the data processor for GSMA. Document 4 has been provided, which is the contract between FIRA and QP (provider), dated 21/02/2022, although in the duration section it states that it "will be valid from January 2022," highlighting:

- "The MWC 2022 event organized by GSMA Ltd. will be held at the FIRA DE BARCELONA exhibition facilities, Gran Vía venue."

- "FIRA, by mandate of GSMA Ltd., and in its capacity as the main contractor, is responsible for managing and coordinating with the provider previously designated by GSMA for the provision of services related to the validation of COVID certificates."

- "FIRA and QP have defined the minimum requirements for the provision of such services and the conditions of their contracting, with the provider having submitted an offer. The parties express their agreement and acceptance of the service offer for MWC BCNA 2022, which includes the provider's offer and the requirements of FIRA and GSMA."

As part of the contract, up to SIX ANNEXES are included.

The clauses follow, among which is the communication of results and validation of tests/vaccination certificates in ANNEX 1B, "System Integration," which states that FIRA will be informed of the results,

only the negative tests, "through an API that FIRA will provide, through which it will indicate the participant's identifier and the validity of the test so that the participant is marked as 'verified for access' in the event's access control systems."

There is a confidentiality clause regarding the information between the provider and FIRA, considering all information received from the event organizer as confidential, which will be used by the provider solely for the purpose of providing the service for which it has been requested.

As an annex to the contract, there is a specific "data processing agreement," ANNEX VI, which regulates the conditions under which QUIRON PREVENCIÓN SLU, as a sub-processor, will carry out the processing of data necessary for the provision of the service, in accordance with Article 28 of the GDPR. It is indicated, among other contents, that GSMA is the data controller and FIRA holds the position of data processor. In its section 1.3, regarding the affected data subjects, it only states that: "For the execution of the services, the data controller makes available to the sub-processor the information described regarding the participants in the event:

'Identifying data, name, surname, government identification number: DNI, NIE-passport), contact data - phone number, email address.'"

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/96

electronic, health data (vaccination certificates, recovery, and diagnostic tests for COVID-19). In point 2.2, it is indicated as a guarantee and commitment of the data processor to handle the data according to the instructions of the data controller."

Among the obligations of the data controller, point 8, is the obligation to "provide information to the data subjects regarding the processing of their personal data."

The respondent provides a copy, in DOCUMENT 3A and 3B, of the framework contract between FIRA and GSMA in English. The first, dated 22/11/2019, establishes FIRA as the owner of the facilities-service provider-and the organizer of MWC Barcelona, GSMA, agreeing on additional services to those subscribed on 14/07/2011, known as "HOST CITY PARTIES," which include other public entities (City Council, Generalitat, etc.). It is indicated in section 5: "data protection and security information," that: "The provider must comply with the provisions of the data protection annex included in Annex 1, Part A of this agreement, which is part of the agreement that designates the provider as the data processor and GSMA as the data controller."

The second, DOCUMENT 3B, reflects an amendment to the contract of 22/11/2019, aimed at extending its validity until 2030, and updates the aforementioned Annex 1, Part A.

3- Attached, as DOCUMENT number 7 bis, is a certificate of destruction issued by the entity QP. The MWC concluded on 3/03/2022, and QP destroyed all data on 8/03/2022, which was the date of completion of the dismantling.

QP holds ISO 27001:2013 certification, accredited under ENAC criteria, as well as certification of compliance with the National Security Scheme, which provides the appropriate security controls to protect the organization's information assets.

4- It mentions the various regulations that may generally enable restrictive actions and interventions by the health authorities of the State (LO 3/1986 of 4/04, on special measures in public health and Law 14/1986 of 25/04, General Health Law). In the context of Catalonia, it reiterates the aforementioned Law 18/2009 of 22/10 on public health, in compliance with which the Departament de Salut of the Generalitat de Catalunya (GC) periodically approved resolutions in accordance with the state of the pandemic and established measures, in coordination with the Territorial Civil Protection Plan in Catalonia (PROCICAT).

It estimates that the applicable legal framework for the organization of MWC 22 consisted of compliance with the applicable conditions according to basic legislation, Law 2/2021 of 29/03, on urgent measures for prevention, containment, and coordination to address the health crisis caused by COVID-19, and the measures and restrictions approved by the Departament de Salut of the Generalitat de Catalunya. It adds that it had to take its organizational actions under the precautionary

principle and duty of care. It accompanies in DOCUMENT 5 a copy of resolutions issued by the aforementioned Departament de Salut, from 7/12/2021 to 2/03/2022, comprising a total of five resolutions that share a similar framework, in which:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
17/96

- Each of them establishes, with temporal validity, the public health measures for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia, indicating the alert level according to the four existing phases, informing about the epidemiological and healthcare indicators, relying on reports such as that of the Scientific Advisory Committee, or the director of the Agència de Salut Pública de Catalunya (ASPCAT).

- After indicating various regulatory provisions related to the field of public health, in which the competent health authorities can adopt various measures, it is stated that "the administrative intervention in public and private activities necessary to address the health crisis situation caused by COVID-19, supported by the aforementioned legislative framework, subjects the measures affecting fundamental rights to the additional guarantee of judicial control regarding the proportionality assessment in its three aspects: suitability, necessity, and proportionality."

- As references to measures affecting fundamental rights, the requirement of the COVID certificate for access to certain non-essential activities in enclosed spaces (restaurants, physical and/or sports activity rooms, gyms, and permitted musical recreational activities: concert halls, café-theaters, concert cafés, and musical restaurants) is cited, and it is also noted for visits to residential centers for elderly people and people with disabilities, which are mentioned for the first time in resolution SLT/3512/2021 of 25/11, persist in that of 7/12/2021, and is reiterated, for example, in resolution SLT8/2022 of 4/01/2022, which has a validity of 14 days, from 7/01/2022, and in which, moreover, for the area of interest here, it establishes:

In its "introduction" section

..."according to the position of the Scientific Advisory Committee on COVID-19, dated November 18, 2021, contained in the document titled Proposta per considerar l'ús del certificat COVID en altres àmbits a Catalunya, among the measures that limit fundamental rights, it proposes to maintain the requirement of the COVID certificate for access to those non-essential activities that take place in enclosed spaces of higher risk due to the main transmission conditions of the virus through aerosols and where there is greater vulnerability and, therefore, a greater need for protection.

These activities are limited to the restaurant sector, rooms and gyms where physical and/or sports activities are carried out, and concert halls, café-theaters, concert cafés, and musical restaurants - (later referred to in section 3.4: "use of COVID certificate") -

In all these activities, the layer of health protection is established, which requires the presentation of the certificate issued by a public health service that certifies one of the following circumstances: that the complete vaccination schedule against COVID-19 is available, that a negative COVID-19 diagnostic test –PCR or antigen test– with a determined validity is available, or that recovery from the disease occurred in the last six months (COVID certificate). Persons under 13 years of age who do not have restricted access to the corresponding premises, establishments, equipment, or spaces due to age are exempt from the requirement to present the COVID certificate.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
18/96

The measure implies a slight impact on equality and privacy in the terms of Judgment 1112/2021, of September 14, by the Administrative Litigation Chamber of the Supreme Court, adopted under the legal framework of Organic Law 3/1986, of April 14, on special measures in public health, in coherence with other health laws, with the aim of reducing the risk that an infected person comes into contact with

uninfected and unprotected individuals and may transmit the infection to them.

The appropriateness and necessity of the measure regarding the objective of protecting health and life is justified by the effectiveness of vaccination as a preventive action, as evidenced by scientific studies, regarding the reduction of infections, hospitalizations, and deaths. Furthermore, there are several factors that increase the risk of transmission of SARS-CoV-2 in activities conditioned by this measure, especially in the current context, where there is a greater circulation of more contagious variants of SARS-CoV-2.

- In its section 3.4 for access to the aforementioned spaces, it is indicated:

“To this end: the persons who are owners or responsible for the premises, establishment, equipment, or space must establish an access control system that allows for the verification of any of the certificates presented by individuals wishing to access as users, without retaining the data contained therein and without using it for any other purpose than the aforementioned access control. Additionally, a notice must be posted in a visible area informing affected individuals of the non-retention of the accredited personal data.”

This provision for the submission of health documentation does not persist after the successive approval of the aforementioned resolutions, starting with SLT 99/2022, of 01/26, which comes into effect on 01/28/2022.

- Regarding the sector of “Congresses, conventions, trade fairs, and major festivals,” it is mentioned, for example, for the first time in SLT/3652/2021 of 12/07, and reiterated in subsequent resolutions, with the following wording:

“1. The celebration of congresses, conventions, trade fairs, and similar activities, as well as professional events, is recommended to be conducted by telematic means. The in-person celebration of congresses, conventions, trade fairs, and similar activities in enclosed spaces requires that the minimum ventilation established in the current regulations on thermal installations of buildings is guaranteed. When more than 1,000 people can be concentrated in the development of these activities in enclosed spaces, it is recommended to maintain compliance with the reinforced ventilation and air quality conditions indicated in Annex 4, and both in enclosed spaces and outdoors, compliance with the organizational measures for crowd control indicated in Annex 3 must be guaranteed.”

- The respondent proceeds to summarize the main conditions established in these resolutions, which are divided into:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/96

1. “General measures for individual and collective protection: distance and mask”

As contemplated in Law 2/2021, the use of the individual mask (art. 6.1) “in any enclosed public space or that is open to the public and at mass events taking place in outdoor spaces, when attendees are standing. If they are seated, it was mandatory when it was not possible to maintain a safety distance of at least 1.5 m between individuals,” and a distance of 1.5 meters between individuals, “which could not have been complied with if the COVID-19 documentation had not been required telematically for its verification and validation.”

2. “Use of the COVID certificate”

It states that “the aforementioned regulation required the presentation of a COVID certificate to access rooms and gyms where sports activities were practiced, concert halls, cafes, theaters, concert cafes, and catering activities.

“Such measures remained in effect during the months of preparation and organization of MWC22, that is, from November until the end of January, although as of Resolution SLT/99/2022, dated 26/01, the submission of COVID-19 certificates to access such activities (rooms and gyms where sports activities were practiced, concert halls, theater cafes, concert cafes, and catering activities) ceased to be mandatory.”

“However, the claim and the sanctioning file improperly initiated by the AEPD refer to the

documentation that GSMA required prior to Resolution SLT/99/2022, dated 26/01, and this regardless of the fact that, as will be verified, it was the documentation required by the organization of an event that anticipated the attendance of 61,000 people (beyond the activities for which the certificate had been made mandatory until 26/01/2022) and in consideration of the existing pandemic situation.” Regarding the celebration of congresses, it was required to ensure the minimum ventilation established in the current regulations.

“However, the truth is that in no way did the Resolutions of the Departament de Salut foresee an organization of the dimensions of MWC22.”

“Therefore, the measures provided in the resolutions of the Departament de Salut for congresses and fairs did not provide clear coverage for an event like MWC22 that was going to gather 61,000 attendees and involved the participation of 11,900 workers and suppliers; a situation that evidenced the need to require the submission of COVID-19 certificates.”

The measures taken by GSMA are a product of the situation at the level of pandemic evolution during the preparation and celebration phase of MWC 22, based on data from the Departament de Salut and previous reports from the Agency of Public Health of Catalonia (ASPC) approved in accordance with Article 55 bis of Law 19/2009, provided in DOCUMENT 5, and under the protection of the precautionary principle in terms.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
20/96

of public health. It examines the situation outlined in the resolution of 23/12/2021, in alert phase 4 out of a total of 4 phases, and details reports from the Director of the ASPC dated 23/12/2021 regarding the Omicron variant, predicting an increase to more than 50,000 daily cases by mid-February 2022. In summary, the months of preparation and celebration of MWC22 were characterized at the pandemic level as a phase of maximum alert and very high risk, to which uncertainty and alarm regarding the impact that the Omicron variant could imply had to be added.

In this context, GSMA, in coordination with the Catalan and Spanish health authorities, opted to require COVID-19 certificates within the framework of the suppliers and workers of MWC22 (which number more than 11,000) and articulated the strategy called "Committed Community Plan," which refers—not to a specific written protocol that can be provided—but to the measures that were being established in response to the unpredictable evolution of the pandemic and the uniqueness of an event like MWC. In fact, the measures were configured by all the Resolutions and reports provided as DOCUMENT 5. It indicates the 17 meetings that were held with health authorities from October 2021 to the end of February 2022, and that "in these meetings, the actions ultimately carried out were examined and validated as specified in the document 'MWC22 ACTION PROTOCOLS,' which is attached as DOCUMENT 6 prepared jointly by FIRA and GSMA, as observed in that document, which was presented to the Catalan and state health authorities for their approval, establishing that the registration process required that builders and participants upload their COVID data.

It states that: "Thus, in accordance with the precautionary principle, it was decided to require COVID Certificates, in the same way that was required until 26/01/2022 for bars, restaurants, or gyms. This requirement is clearly proportionate and appropriate, considering the dimensions of the event. In this regard, let us remember that the organization of MWC22 required the involvement of 11,900 workers and suppliers." "GSMA has limited itself to complying with the regulations on public health and the measures decreed by the health authorities. And all this always starting from the precautionary principle provided in Article 3 of Law 33/2011 and the caution required by Article 4 of Law 2/21."

The DOCUMENT 6 provided is a chart titled: "Health requirements for access to MWC 2022 protocol 1," dated 27/01/2022, version 2.0, in which it indicates that builders/registration must upload the COVID passport, PCR-TAR, which is verified by QUIRON, plus a subsequent health self-declaration accepted to achieve access control, with additional protocols in case of a positive result, criteria and circumstances for isolation in the event of a positive case, and actions in case of an attendee's indisposition.

5- There has been no infringement of Article 9.2 of the GDPR because the action is covered by the exceptions contemplated in headings g) and i)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

21/96

“g) the processing is necessary for reasons of essential public interest, based on Union law or the law of the Member States, which must be proportional to the objective pursued, respect essentially the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject; (...)

“i) the processing is necessary for reasons of public interest in the field of public health, such as protection against serious cross-border health threats, or to ensure high levels of quality and safety of healthcare and of medicines or medical products, based on Union law or the law of the Member States that establishes adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy.”

It must be clarified, first of all, that, in line with what was analyzed in the previous allegation, GSMA applied the measures and limitations regarding public health protection provided in the Resolutions of the Department of Health that are attached as DOCUMENT number 5 and that GSMA, in a coordinated manner with the health authorities, interpreted and applied, in accordance with the details outlined.

The common denominator of the mentioned articles is that the processing is necessary for reasons of public interest, and GSMA has acted for reasons of public interest based on the principles of prudence and caution and the health regulations issued by the various Administrations, in order to establish the necessary health measures to protect the health of workers and suppliers, as well as attendees.

Furthermore, the right to data protection is not unlimited and finds its limits in other fundamental rights such as the right to life and health. It cites the ruling of the Supreme Court number 1112/2021 of 14/09/2021 regarding measures consisting of the requirement to present the COVID-19 passport in establishments of public attendance. The ruling assesses the impact on privacy in relation to public life and health. It concludes by stating that “the processing of sensitive data carried out, which referred to the data required under health legislation and the Resolutions issued by the Department of Health, responds to an indisputable essential public interest such as the protection of individuals who were to participate in the MWC22 in a pandemic context as described.” The Supreme Court endorses the sufficient coverage of the health regulations of Galicia (in relation to the case judged in the Ruling) to impose identical measures to those agreed upon by the Catalan health authorities; measures that, as we have seen, GSMA had a legal obligation to interpret and apply in the framework of the organization of MWC22 and that required, given the magnitude of the event, telematic processing.

The measures and the processing of personal data carried out are covered by public health legislation. It is required that the processing be based on the law of the Member States, and it cannot be overlooked that Article 9.2 of the LOPDGDD specifies: “2. The data processing referred to in letters g), h), and i) of Article 9.2 of Regulation (EU) 2016/679 based on Spanish law must be covered by a norm with the rank of law, which may establish additional requirements regarding its security and confidentiality.” Well, as has been extensively analyzed, the measures applied by GSMA are supported by norms.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/96

with the rank of law, both state and autonomous: LO 3/1986, Law 14/1986, Law 2/2021, and Catalan Law 18/2009. “Under the protection of this legislation and the Resolutions approved by the Departament de Salut, GSMA has implemented the measures for the registration and processing of data, in order to effectively comply with the measures required by the legislator and health authorities.

"It is worth noting that the sufficiency of this regulatory framework to agree on limiting measures within the framework of the prevention of the COVID-19 pandemic, specifically the requirement for COVID-19 Certificates, has been confirmed by Judgment 1112/2021."

The processing has been proportional and adequate regarding health data related to COVID-19, in electronic form and for the duration of the event.

In accordance with Article 9.2.i) of the GDPR, GSMA adopted appropriate and specific measures to protect rights and freedoms, without having access to the data.

- Article 6.1 of the GDPR has not been violated. It reiterates that the action would be covered by Articles 6.1.c) and 6.1.d) of the GDPR. The processing of personal data carried out by GSMA was conducted in compliance with the legal obligations imposed by public health legislation and the measures applied by health authorities. The legal basis for the specific measures required by health authorities and applied by GSMA regarding data processing and the requirement for a COVID-19 passport is provided as DOCUMENT number 5. For the purpose of demonstrating the legal obligation that GSMA was applying and complying with based on the requirement for COVID-19 certificates, in accordance with the provisions of Article 6.1.c) GDPR, it is appropriate to recall: "That LO 3/1986 and Law 14/1986 support all preventive and restrictive measures agreed upon by health authorities to control communicable diseases in the face of an imminent and extraordinary risk to health. - Likewise, in compliance with basic state legislation, Catalan Law 18/2009 reiterates that in accordance with these Resolutions from the Departament de Salut, a COVID-19 certificate was required to access any place of public attendance (bars, restaurants, gyms, etc.): interpreting and applying these Resolutions from the Departament de Salut according to the principle of precaution and caution, GSMA required the COVID-19 Certificate from all suppliers of MWC22, as well as attendees. And all of this, in accordance with the criteria and authorization obtained from health authorities."

As the GDPR recognizes, the legal basis for processing can be multiple. Thus, in this case, the processing of data rests on a dual legal basis, also applying Article 6.1.d) of the GDPR, taking into account Recital (46) of the GDPR recognizing those emergency situations, specifying that the processing of personal data will be lawful when necessary for humanitarian purposes, including epidemic control, as reflected in the report of the AEPD 17/2020, which specifies that Article 6.1.d) GDPR is a sufficient legal basis and can be used for the processing of personal data aimed at protecting all those individuals susceptible to being infected in the spread of an epidemic: "Article 6.1.d) GDPR considers not only that the vital interest is a sufficient legal basis for processing to protect the 'data subject' (as this is a term defined in Article 4.1 GDPR as an identified or identifiable natural person), but that this legal basis can be used to protect the vital interests 'of another natural person,' which by extension means that these natural persons may even be unidentified or unidentifiable; that is to say, this basis.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

23/96

The legal basis for processing (vital interest) may be sufficient for the processing of personal data aimed at protecting all those individuals susceptible to being infected in the spread of an epidemic, which would justify, from the perspective of personal data processing, in the broadest possible manner, the measures adopted for this purpose, even if they are aimed at protecting unnamed or initially unidentifiable or identifiable individuals, as the vital interests of such individuals must be safeguarded, and this is recognized by personal data protection regulations. It states that "In these public health emergency situations, it allows data controllers to adopt the necessary measures to safeguard the health of individuals, with such measures being those determined by health authorities, and those taken by the respondent were in application of the administrative resolutions of the Departament de Salut and the requirement for COVID certificates from electronic means, which was agreed upon with health authorities."

- Article 14 of the GDPR has not been violated; the obligation has been fulfilled. It first notes the lack of standing of the AEPD since the complaint does not state that the information provided by GSMA is

deficient, but only focuses on health data. It invokes the ruling of the Audiencia Nacional of 23/12/2022, BBVA, considering that in this case the allegation of the infringement of Article 14 of the GDPR is completely disconnected from the complaint presented, so in no way can the AEPD use this procedure to allege an infringement of the duty of transparency. Furthermore, it indicates that the information provided by GSMA complies with the provisions of Article 14 of the GDPR. It states that in the privacy policy provided by GSMA on 29/04/2021, reference is made to third parties and providers with terms that apply, among others, to "third-party personnel and other individuals participating in the event," explaining the literal content as follows:

"This Privacy Notice applies to the processing of personal data of participants in MWC Barcelona, including attendees, exhibitors, sponsors, speakers, partners, third-party personnel, and other individuals participating in the event. This includes personal data obtained through the attendee registration system, the Event app, the partner program registration system, the exhibitor and partner registration system, the digital and/or printed scanning of credentials and/or facial recognition (at access points, for sessions, or for participation in closed meeting spaces) at the Event, and the bulk upload system for contractors."

Additionally, it contains information in the section: "Information obtained from third parties" which states: "From time to time, GSMA receives personal information from third parties. This may occur, for example, if your employer is a member of GSMA and registers you for an event or training, or if your employer (or entity for which you are contracted as a contractor or temporary staff member) provides services to GSMA and you participate in the provision of these services," clearly indicating in the clause regarding the source of the data that employers will provide the data of their employees. It considers that the content of this information is sufficient, deducing it from the AEPD's assertion in the initiation agreement by stating the "privacy policy of the respondent's website," the content of which does not refer to the employees of the providers, but to the attendees/participants at the event, understanding that in the agreement it considers that it is not compliant with Article 14 of the GDPR, assuming the aforementioned initiation agreement and

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

24/96

Acknowledging that the rest of the information has been provided adequately, the information contained in the privacy policy is sufficient.

It adds that the registration application also contained the privacy policy, providing a screenshot of a registration: "Contractor accreditation-system login" to fill in email and password, with a "Sign in" tab, a section to link to the text: "legal" in the lower left corner, next to another one "contact us" that leads to the next screen, where there are 6 links with varied information on the same screen, to mention a few, about cookies, the terms and conditions of the event, or "privacy" where if linked, the "privacy policy" appears. It provides another screenshot that does not clarify how to access it, showing "health declaration" (and a link for more information www.mwcbarcelona.com/attend/safety) with the "submit" button. The respondent states that "it is clear in this section that employees are informed of the data provided by the suppliers." It states that they provide in DOCUMENT 9 the text of the privacy policy of the version applicable to the celebration of MWC 22, of which the following should be highlighted:

- Last updated 29/04/2021

- Sections are shown under the title they offer about the information they contain, which can be accessed by linking to any of them, being distinguishable:

When does this privacy policy apply? In which it states "This Privacy Notice applies to the processing of personal data of participants of MWC Barcelona, including attendees, exhibitors, sponsors, speakers, partners, third-party personnel, and other individuals participating in the event. This includes personal data obtained through the attendee registration system, the Event application, the partner program registration system, the exhibitor and partner registration system, the digital and/or printed scanning of credentials and/or facial recognition (at access points, for sessions or for participation in closed meeting spaces) at the Event, and the mass upload system for contractors."

[Translation in Spanish]

In the section "information you provide voluntarily," among others, it states:

"COVID-19

As stated in our Committed Community plan, you will be required to undergo Covid-19 testing at regular intervals during the Event. The information regarding the results of your tests will be processed solely for the purpose of controlling access, tracking, and traceability as required by local health authorities, in their regulation and protocol for relevant events.

In the section "information we obtain from third parties," it states:

"From time to time, GSMA receives personal information from third parties. This may occur, for example, if your employer is a member of GSMA and registers you for an event or training, or if your employer (or entity for which you are contracted as a contractor or temporary staff member) provides services to GSMA and you participate in the provision of these services." [Translation into Spanish]

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

25/96

In the section titled "Legitimate Bases for the Processing of Personal Information," it is stated, among other matters, that: "In some cases, we may also have a legal obligation to collect personal information about you; we may be required to do so for reasons of public interest or otherwise need the personal information to protect your vital interests or those of another person, for example, in the event of a medical emergency during the Event."

Subsidiarily, it considers the infringement to be prescribed as minor, as it does not regard it as an omission, since the privacy policy was duly provided, and if the AEPD considers it incomplete, the infringement would be classified as minor, as a formal breach of Article 74.a) of the GDPR.

Eventually, upon notification of the initiation agreement, dated 5/06/2023, and the complaint having been filed on 29/01/2022, the statute of limitations for the prosecution of infringements classified as minor would have elapsed.

7- It alleges the enforceability of liability on grounds of intent or negligence (Article 28 of Law 40/2015), which excludes objective liability, considering the exposition by the ruling of the Supreme Court, Administrative Litigation Chamber, Section 3, No. 1456/2021 of 13/12, and in the absence of culpability, which must result in the conclusion that it cannot be sanctioned. Furthermore, in the hypothetical case that it should be sanctioned, "the impropriety of the resolution is evident since, in no case do aggravating circumstances concur." It considers that in the facts attributed to GSMA, there is no culpability, due to:

- "The intention behind the processing of sensitive data was solely and exclusively to guarantee the health of workers, suppliers, and ultimately of the attendees and participants at MWC22," in a temporal context, December 21-March 22 at maximum alert, with approval by the Catalan authorities of changing restrictive measures, measures that "required the provision of COVID-19 certificates in any establishment or event of public attendance." Achieving the objective of holding MWC 2022 did not have any negative impact on the pandemic situation.

- With the high number of participants, suppliers, and workers, it acted from the "precautionary principle" (Article 3 of Law 33/2011 of 4/10, General Public Health), in a coordinated and consensual manner with health authorities.

- Acting diligently by commissioning QP.

Subsidiarily, and posing it in dialectical terms, it violates the principle of proportionality, as it attributes excessive amounts that do not correspond to the facts and circumstances at hand. It estimates that the aggravating factor of recidivism from file PS/00553/2021, resolved on 24/02/2023, in the context of the celebration of the previous year's MWC, would not apply, much less for the three infringements attributed, when recidivism according to Law 40/2015 in its Article 29 refers to an "infringement of the same nature," considering the Supreme Court in its ruling of 23/03/2005 (without further identifying elements) that it would apply "regarding the same type of infringement." It estimates that recidivism is only applicable when the same type of infringement occurs. It considers that the infringement of the

aforementioned PS, for not having conducted an evaluation of...

26/96

impact on biometric data for access to the MWC, violating Article 35 of the GDPR, is not of the same nature as the three infringements attributed in this procedure, one of which involves the processing of health data.

The nature, scope, and purpose of the operation under Article 83.2.a) of the GDPR should have been assessed as a mitigating circumstance, not an aggravating one, in relation to the three infringements attributed, as it is evidenced that the sole purpose of their actions was to safeguard the health of the workers and suppliers of the MWC22, "in line with the measures shared with and agreed upon by the health authorities."

Improper application of Article 83.2.b) of the GDPR as an aggravating factor, in relation to the violation of Article 14 of the GDPR, should be considered as a mitigating factor due to the objective pursued of collaborating with health authorities in compliance with public health legislation and the measures and restrictions applicable for the control of COVID-19, and the diligence in their actions, which implies no access to the data through the hiring of QP.

- Impropriety of the application of the aggravating factor of Article 83.2.k) of the GDPR, in relation to Article 9.2 of the GDPR, considering that the AEPD believes that given the need to regularly process data for the organization of the event, it has been doing so in successive editions. It is estimated that its activity is to develop events related to the promotion of mobile telephony and is carried out in collaboration with the public organization FIRA, estimating that the business activity of the respondent has no special connection with the health data of its participants and collaborators.

- Requests that, if not archived, as provided for in Article 77 of the LPACAP, "the Instructor shall proceed to open a trial period and grant this party the opportunity to propose the corresponding means of evidence. In this regard, and aside from the documents submitted along with this writing and which will be proposed as Documentary Evidence, it will proceed to propose to the Instructor the corresponding evidence from QP, the Agència de Salut Pública de Catalunya, the General Directorate of Public Health of the Ministry of Health, and the Directorate of Fira de Barcelona, involved in the procedure followed to protect public health in the organization of MWC22; and this without prejudice to other evidence that may be proposed."

NINTH: First extension of allegations, dated 11/10/2023

On 11/10/2023, the respondent expands the allegations on the following aspects:

It states that subsequent to the date of submission of the previous allegations, it has had access to additional documentation that it believes would confirm the impropriety of the sanctioning file, specifically regarding the infringements of 9.2 and 6.1 of the GDPR.

It reiterates that the respondent, in coordination with the Catalan and Spanish health authorities, opted to interpret and apply the resolutions of the Department of Health of the Generalitat in accordance with the precautionary and preventive principle required by public health regulations and the evolution of the Omicron variant. Consequently, COVID-19 certificates were required within the framework of the suppliers and workers of the MWC.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

27/96

2022, and which has been accredited through the resolutions of the Department of Health and the rest of the documentation provided in the previous allegations.

It reiterates that the task of evaluating and validating COVID certificates not only for the workers, 11,000, but also for the attendees, 61,000 people, presented a complexity and magnitude that could only be carried out electronically due to the respect for social distancing and the preventive measures required by the applicable health legislation. It provides reports issued by the Scientific Advisory Council on COVID-19 (CCAC), (DOCUMENT 1), an advisory body attached to the Secretary of Public Health of the Department of Health, created "from the resolution SLT/2917/2021 of 29/09, reports that

are configured as the scientific basis used by the periodic resolutions issued by the aforementioned Department." Their reports issued during the months of November and December 2021 would confirm that the measure adopted by the defendant—in collaboration with health authorities—of requiring a COVID-19 certificate "from individuals entering the FIRA venue" was in accordance with public health regulations. DOCUMENT 1 includes the CCAC report titled "Proposal to consider the use of the COVID certificate in other areas of Catalonia," dated 18/11/2021, which, as stated by the defendant, evidences that the requirements for COVID-19 certificates at events both outdoors and indoors were unanimous in most European countries.

In summary, it states:

The EU COVID-19 certificate came into effect on 1/07/2021 and certifies a person's health information regarding COVID-19. After explaining its content and that it was created to facilitate travel between EU countries, colloquially known as the "COVID passport," it indicates that "its use can facilitate access to services beyond the possibility of traveling" and prefers to refer to it as the "COVID certificate," as graphically shown in a table-graph 1, regarding access to certain places and events in the EU, and explains, for example, the implementation in Belgium of the "COVID SAFE TICKET" to access events where more than 5,000 people attend (approved by the Belgian authorities as derived from the connecting link). The graph is titled "Areas where the COVID certificate or equivalent is required in other European countries" by type of activity and coincides that at events in outdoor spaces as well as indoors (without indicating capacity), it is required in the 10 countries mentioned, with the source being the Scottish Government. It also explains that, in some countries, in some cases "the vaccination certificate or the obligation of vaccination is required, these initiatives being effective in increasing vaccination coverage." It mentions that currently, it is required to access the interior of certain establishments, "for which it is required to show the certificate, although collecting data from attendees is not permitted."

It explains the reasons for considering the extension of the COVID certificate in Catalonia, differentiating essential activities in which "it is reasonable to facilitate work and educational activities without impediments from non-essential ones." It adds that, although discrimination in access implies the limitation of an individual right, it is a consequence of the choice not to be vaccinated; this limitation in certain spaces occurs to guarantee the right to health protection for others and individuals.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

28/96

Those who do not provide the documents will not be able to access, adding that only submission is required; files cannot be created. "The COVID certificate is shaping up to be the most efficient measure to prevent the closure or limitation of hours for non-essential services. It brings benefits and poses no potential risk to individual or public health."

This document aimed to gather the technical opinion of the aforementioned Council regarding when and in which areas it is advisable to extend the COVID certificate based on data and indicators, and served as the basis for the issuance of the resolution of 7/12 from the Department of Health SLT/3652/2021. In this resolution, a system of four risk levels is indicated to act as an alert for a possible increase in cases and to serve to activate and deactivate the requirement for the COVID-19 certificate in Catalonia, also containing criteria and proposals to determine in which areas the extension of the COVID certificate should be considered in each risk level. It cites environments of high epidemiological risk (especially in closed settings where masks may be removed and/or where the minimum safety distance cannot be maintained), or the minimization of the risk of contagion in cases of individuals presenting a high risk of severe complications. It acknowledges that "Although the COVID certificate does not guarantee that a person is not infectious and does not replace other non-pharmaceutical measures, it does significantly reduce the probability of contagion. On the other hand, in consideration of the common good in a context of limited healthcare system resources, it is configured as a mechanism to prevent the overload of primary and hospital care."

In accordance with the proposals of the Scientific Advisory Committee, the report from the director of the Public Health Agency of Catalonia prioritizes maintaining the requirement for the COVID certificate for access to those non-essential activities that take place in closed spaces of higher risk due to the main conditions of virus transmission by aerosols and where there is greater vulnerability and, therefore, a greater need for protection.

These are: musical recreational activities, both ordinary (nightlife) and extraordinary (music festivals, concerts at major local festivals, popular events, open-air dances, and other cultural events with standing and dancing possibilities), the hotel and restaurant sector where social events with dancing activities are offered; restaurants and establishments, and gyms where physical and/or sports activities are conducted. For greater legal certainty, it is specified that the concept of closed spaces corresponds, for these purposes, to indoor spaces and outdoor spaces that are covered and surrounded laterally by more than two walls, barriers, or partitions.

"In all these activities, the layer of health protection is established, which requires the presentation of a certificate issued by a public health service that certifies one of the following circumstances: that the complete vaccination schedule against COVID-19 is available, that a negative COVID-19 diagnostic test –PCR or antigen test– with a determined validity is available, or that the individual has recovered from the disease in the last six months (COVID certificate). Individuals under 13 years of age who do not have restricted access to the corresponding venues, establishments, facilities, or spaces due to age are exempt from the requirement to present the COVID certificate."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

29/96

The measure of the COVID certificate, adopted under the legal framework of Organic Law 3/1986, of April 14, on special measures in public health, in coherence with other health laws, implies an impact on the fundamental rights to equality (Article 14 CE) and to privacy (Article 18 CE) of a tenuous nature, in the terms of Judgment 1112/2021, of September 14, of the Administrative Litigation Chamber of the Supreme Court, confronted with the strong presence of the fundamental rights to life and physical integrity (Article 15 CE) and with the protection of health (Article 43 CE), which defends the general interest of all in surviving COVID-19. The aforementioned Judgment has also established the parameters that the measure, as it affects fundamental rights, must meet in order to surpass, subject to the guarantee of judicial control, the proportionality test in its three aspects: suitability, necessity, and proportionality of the measure.

The cited report also argues that the use of the COVID certificate should be extended to more areas than those required up to that moment, considering it:

- a suitable measure: "The COVID certificate is proposed as a measure to coexist with COVID-19 and reduce the risk of transmission in environments of high epidemiological risk (especially in closed environments where masks may be removed and/or where the minimum safety distance cannot be maintained)." The claimant considers that the scope of MWC22 with the degree of participation noted was such an environment, and deduces that the requirement of the COVID certificate was suitable.
- a proportional measure, considering that "it is a temporary, proportional, and balanced measure to reconcile the protection of public health with the carrying out of certain activities and thus avoid the closure of non-essential services."
- It is a non-discriminatory measure in that the access ban for individuals who do not present it, although it constitutes a limitation on an individual right, occurs to guarantee the right to health protection for others.

The CCAC document of 18/11/2021 (not the resolutions of the health authorities issued) provides for the necessity of requiring (requesting) the COVID-19 certificate for congresses of more than 500 people and at any event gathering more than 10,000, referencing the phenomena of super-spreading in indoor spaces and also in large outdoor events with a high concentration of people where the minimum interpersonal safety distance could not be ensured. It provides a framework for large events such as, for example, congresses, in indoor settings with attendance of more than 500 people, where it

would be requested, or in venues of any type with a capacity exceeding 10,000 people, such as the Camp Nou football stadium.

- Another document, such as the one on "preparation and response to the Omicron variant of the SARS-CoV-2 Coronavirus in Catalonia," dated 19/12/2021, which was taken into account in the resolution of 23/12 SLT 3787/2021, with the scenario of "very high risk," which meant:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

30/96

"The preliminary data generated by different laboratories confirm the concerning resistance in antibodies of the Omicron variant. Initially, prior infection or the initial vaccination regimens do not seem sufficient to guarantee a sufficient neutralizing response against Omicron, while third doses have a positive impact in increasing the levels of neutralizing antibodies. It is suggested (based on the available scientific evidence) a more than possible reduction in the effectiveness of the different vaccines against infection. The epidemiological impact of this variant in the short, medium, and long term will be very significant. Simulation results of possible scenarios show that an increase in incidence is expected, which, in the absence of additional measures, could lead to more than 50,000 daily cases by mid-February 2022."

The respondent indicates that, consequently, the reports from the CCAC confirm that the requirement of the COVID-19 certificate for access to the venue is configured as a measure required by public health legislation and the resolutions approved by the health department.

It details the burden and volume of work involved in the electronic validation of the three modalities for attendees to access the event by QP (not mentioning any aspect regarding the employees of the suppliers), which also came from different nationalities, such as the vaccine being listed as authorized, the certificate issued by the competent authority, the validity of the vaccination certificate, and the dates from which the COVID-19 recovery certificate was valid. It provides a table of the volume of reports processed in the days prior, from 21/02/2022 to 02/03/2022, and reiterates that the only way to comply with the necessary and mandated health measures by health authorities and maintain the minimum distance was the prior presentation of these certificates by electronic means.

In conclusion, it estimates that it has not violated Article 9.2 of the GDPR because the processing of health data, the COVID-19 certificates, was covered by the exceptions in Article 9.2.g) and i) of the GDPR, as it was necessary for reasons of "essential public interest," and for "public interest" reasons in the field of public health. Furthermore, the processing of personal data carried out by GSMA was conducted in compliance with the legal obligations imposed by public health legislation and the measures applied by health authorities.

7- In the event that a sanction is to be imposed, it requests that the sanction be imposed at its minimum level for the infringements of Articles 6 and 9, considering the concurrent circumstances and the principle of proportionality.

TENTH: Second extension of allegations, dated 21/11/2023

On 21/11/2023, additional allegations are received.

The respondent states that the documentation now provided, along with the preceding documents, reaffirms its thesis that Article 9.2 and 6.1 of the GDPR have not been violated, and that the measures applied were agreed upon and authorized in coordination with FIRA and health authorities in compliance with public health legislation and COVID-19 prevention measures.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

31/96

It provides a letter from FIRA DE BARCELONA, dated 31/10/2023, the contractor and data processor of the respondent, which was sent to request confirmation regarding the process they undertook in the context of the celebration of MWC 2022 under health safety conditions, proceeding to outline the

explanatory context as follows:

- "Considering the experience carried out in the year 2021, it was agreed to create a working group composed of professionals from the Public Health Agency of Catalonia, FIRA DE BARCELONA, and GSMA," to "establish and implement an ad-hoc health plan that mitigated the risk of generating an epidemic outbreak in the environment of the development within the fairgrounds."
- "The successful precedent of the defined and executed Health Plan of MWC21 will be taken into account," which had as its fundamental pillar the performance of rapid antigen tests as a prior step to the authorization of access for visitors to the fairgrounds.
- It explains the environment in which MWC 22 was to be developed and the previous preparations, considering the "proposal to consider the use of the COVID certificate in other areas in Catalonia," from the CCAC dated 18/11/2021, in light of a situation of alert at phase 4 and the magnitude of the event along with the variation of epidemiological conditions.
- It reiterates that one of the resolutions issued required the presentation of a COVID certificate for certain activities as access requirements, "until 26/01/2022."
- "FIRA and GSMA, in coordination in various meetings with the management and the Public Health team of the Public Health Agency of Catalonia of the Generalitat de Catalunya, will follow what was recommended by the CCAC and the ongoing situation of requiring the COVID certificate in other European countries as stated by the same CCAC in its report of 21/01/2022."
- "For all the above reasons, it is for this that the management of the Public Health Agency of Catalonia of the Generalitat de Catalunya communicated to the organizers of MWC22 their agreement with the 'Mitigation Plan' that we proposed, considering the scientific evidence, the requirement of the vaccination certificate against COVID-19, and in case of not having it, the performance of TAR conducted by a health partner as a prior step to the authorization of access for visitors and staff to the fairgrounds."

It concludes with: "Awaiting your confirmation that this is how it has been acted upon, or otherwise, your comments or clarifications."

To the letter, a response email dated 7/11/2023 is attached, with the signature footer of the Deputy General Director of Public Health Coordination, Secretariat of Public Health, according to the respondent to which the ASPC depends, indicating: "In relation to the letter received regarding the process followed for COVID control measures at the MWC held from 28/02/2022 to 3/03/2022, I confirm my agreement with the content expressed in said letter." According to what was stated by the respondent, this Deputy Director held the position during the months of preparation for MWC22. The respondent explains the role of the Public Health Agency of Catalonia, having its Director as a public health authority (art 5 Law 18/2009) competent to decide and propose the measures and restrictions to be adopted regarding the control of the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

32/96

pandemic. And that the ASPC has, among other functions, the duty to issue a prior and mandatory report on the resolutions dictated by the Department of Health biweekly regarding care aspects and epidemiological and public health aspects in order to certify the updated situation of contagion risk, the control situation of the pandemic, and the sufficiency of the measures and proposed measures to be adopted (art. 55 bis Law 18/2009).

The respondent reiterates that the measures were agreed upon by GSMA in coordination with health authorities at a level declared to be very high risk by resolution of 23/12/2021, SLT/3787/2021 of 23/12.

The respondent indicates that, within the working group composed of ASPCAT, FIRA, and GSMA, for the celebration of MWC 2022, they proposed to the ASPC "the requirement by telematic means of COVID-19 certificates for anyone intending to access the FIRA venue during the preparation and celebration of MWC 2022, which had the approval of ASPCAT, according to the response to the letter from FIRA," specifying:

"It is for all the above that from the management of the Public Health Agency of Catalonia of the Generalitat de Catalunya, the organizers of MWC22 were communicated their agreement with the proposed mitigation plan," in 17 working meetings from October 21 to February 22. ASCPAT was the competent health authority to propose the measures and restrictions to be adopted by the Department of Health in order to control the pandemic."

"The health authorities and FIRA validated and authorized both the mandatory requirement of COVID-19 certificates for entry to the FIRA venue, as well as the provision and management of such data by telematic means, as the only viable solution considering the legal requirements in public health matters."

It concludes by indicating that this documentation confirms that it has acted within the framework of compliance with legal obligations in public health matters, with the impropriety of the infringements of articles 9.2 and 6.1 of the GDPR, reiterating that the processing of health data, that is, the COVID-19 certificates, was covered by the exceptions provided for in art. 9.2.g) and i) of the GDPR as it was necessary for reasons of "essential public interest" and "for reasons of public interest in the field of public health."

FIRST: Issuance of resolution proposal of 12/03/2024.

On 12/03/2024, a resolution proposal was issued with the following text:

"That the Director of the Spanish Agency for Data Protection sanctions GSMA LIMITED, with NIF N4004237F, with an administrative fine for the following infringements of the GDPR:

- an infringement of article 9.2 of the GDPR in accordance with article 83.5.a) of the GDPR, and for prescription purposes, classified as very serious in article 72.1.e) of the LOPDGDD, with a fine of 300,000 euros.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

33/96

- an infringement of article 6.1 of the GDPR, in accordance with article 83.5.a) of the GDPR, and for prescription purposes, classified as very serious in article 72.1.b) of the LOPDGDD, with a fine of 200,000 euros.

- an infringement of article 14 of the GDPR, in accordance with article 83.5.b) of the GDPR, and for prescription purposes, classified as very serious in article 72.1.h) of the LOPDGDD, with a fine of 100,000 euros."

On 20/03/2024, an extension of the deadline to make allegations was requested, which was granted.

SECOND: Allegations to the resolution proposal presented on 08/04/2024.

On 08/04/2024, the following allegations were presented by the respondent:

1- It states that document 4 provided in its allegations actually contains two contracts, one the MAIN and the other the SUBCONTRACT for processing, and that the first contained broader elements than the subcontract.

It claims that the subcontract for processing was limited to the administrative validation of the health documentation related to COVID, provided by visitors and "workers" of MWC 22, "in order to grant them the status of fit or not for access and to work in it, before, during, and after the celebration of the event."

Based on this, as a new allegation not previously made, it states that "the services provided in the main contract and not contemplated in the subcontract for processing," included:

- "Medical or health validation of the COVID certificates by medical or health personnel from QUIRÓNPREVENCIÓN."

"Assuming the decision and medical risk of declaring FIT to enter and work in the fairgrounds for a person who could be infected with Covid. Neither GSMA Ltd. nor FIRA were authorized to make this decision as they lacked medical or health personnel."

- "Contact and medical recognition of the worker or visitor in case it was necessary."

- "Hospital care service (24/7) through the network of Quirón Salud centers for all participants in

MWC22."

- "Conducting, if necessary, antigen tests by health personnel."

Regarding them, it states that they should be understood as the provision of medical or health services that they provide as data controllers, because:

- There is direct treatment with the interested party,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

34/96

- These medical services, as well as their professionals, have a legal and ethical obligation of independence, a direct relationship with the patient, medical responsibility, management and preservation of medical records, management and preservation of health data, which obliges them to be responsible for both medical decisions and the treatments performed, as stated in the Medical Deontology Code of the General Council of Official Medical Colleges of Spain.

2- It also states that as established in the "main" contract in the section "statements," that "it did not prevent the parties from reaching agreements regarding aspects not contemplated in the offer, or incorporating or modifying at the request of its organizer any aspect of the service as long as it was reasonable," QUIRONPREVENCIÓN provided services related to the support of the coordination of business activities, which aimed at the ultimate goal of preventing occupational risks, based on considering each of the workers who provided their services at MWC 22 as fit or unfit, and that "in practice, the medical or health validation services of the documents provided by the visitors also extended to the workers who provided their services in the exhibition venue where MWC22 would take place," "taking into account that the visitors posed a biological risk to the workers and the workplace." It points out that all these services were not included in the subcontractor treatment contract.

It states that given the number of countries that would visit the event and that the vast majority of exhibitors represented at the event hire their own workers "in their country of origin or through specialized agencies," thousands of workers from countries around the world, many considered high or very high risk by Spanish health authorities, were present, and given the profile of the workers, "resistant to following a safety protocol," "it required the application of a sanctioning protocol that ensured compliance with health regulations, which included the expulsion from the venue of workers who violated the regulations." It indicates that the workers who provided their services for the setup, including providing their services for the exhibitors, "would be exposed to an evident biological risk threat," and that "The legal obligations of employers regarding the prevention of occupational risks arising from biological risk are provided for in Royal Decree 664/1997 of 12/05 on the protection of workers against risks related to exposure to biological agents during work."

It adds that "assistance was requested from immigration authorities and it was agreed to apply the same measures imposed at the border, especially at airports managed by AENA, where QUIRONPREVENCIÓN provided this same service," and that: "to determine the health measures and reduce the biological risk, consultations were made with various authorities," resulting in the development of "safety and health guidelines" and an FAQ, which the respondent published on its page and provided to its exhibitors and suppliers.

The URL that indicates access to this content ***URL.3, is an informational note for accessing MWC22, indicating, for example, that "before traveling, consult the current protocols for entering Spain," and it details that to access FIRA, all attendees, including staff and exhibitors, must provide proof of: vaccination against Covid-19, a valid recovery certificate, or a negative diagnostic test (PCR or rapid antigen test is accepted).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

35/96

"The documents demonstrating the Covid-19 status must be submitted through the official MWC22

application or the registration page on the conference website. These will then be reviewed by the event's medical partner, Quironprevención; if there is any issue with something submitted, the healthcare company will contact the individual via email.

Once the test has been accepted, a digital entry credential will be activated, and attendees will receive a confirmation via text message.

Those undergoing an access test must do so every 72 hours. Each result is only valid if the 72-hour period following the test covers the entire day of the event. If it expires during the day, entry will be denied to the individual. The application will notify delegates in advance whose entry certificates are about to expire, and the expiration date will be displayed on the digital credentials of the attendees. Those using full vaccination status to enter must have received their final dose at least 15 days prior to the event. Approved vaccination certificates and recovery test documents are valid for the entire event. No tests will be available on-site.

In addition to the Covid-19 status test, attendees must submit a daily health questionnaire and a declaration in the application.

The FAQ section mentions the GSMA Community Commitment Health and Safety Plan and includes other information, only pertaining to attendees. It states that "if you are flying to Barcelona, check with your airline for COVID-19 requirements to understand the specifics for health and safety measures."

"For general information on safety and health, you can visit the website of the Ministry of Health of Spain."

It is reiterated that to access the venue, visitors once registered must validate their vaccinations, their recovery test documents, valid for the entire duration of the event, or undergo valid tests for 72 hours, and complete a daily health declaration in any of the three scenarios. It is also informed that the validation is carried out by a medical partner.

3- It indicates that QUIRONPREVENCIÓN acted as a partner for the employees of "any provider, including those of more than 1,500 exhibitors as well as the providers who provided their services to GSMA, FIRA, and their exhibitors," and that in practice "it also carried out the medical or health validation of the documents provided by the workers of the various employers attending the fairgrounds and supported the coordination of business activities and the prevention of occupational risks with the aim of protecting the approximately 10,000 active workers in the venue from the biological risk derived from COVID."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

36/96

"The role of QUIRONPREVENCIÓN in supporting the coordination of business activities and the prevention of occupational risks was regulated by the occupational risk regulations and the specific regulations governing the coordination of business activities.

In this type of service, QUIRONPREVENCIÓN assessed whether the workers were fit or unfit to work at the fairgrounds.

The ephemeral nature of the MWC, as well as the precise regulation of the coordination of business activities in Article 24 of the Occupational Risk Prevention Law, make the measures consisting of providing a special contractual framework for this service disproportionate, with the regulations governing its activity being applicable."

QUIRONPREVENCIÓN has platforms for managing companies that contract its services and their suppliers, which may serve purposes of coordinating business activities, regulated by Article 24 of the Occupational Risk Prevention Law and RD 171/2004 of 30/01, which develops said article, reiterating that it includes the provision of medical or health validation of the documents submitted by the workers of the client companies by the health teams with a duty of professional secrecy, to which the General Health Law and the Patient Autonomy Law apply, as well as the regulations on occupational risk prevention services, which establish obligations for healthcare personnel that prevail over the contracts that QUIRONPREVENCIÓN may have with client companies as they derive directly from the Law.

"It is a healthcare activity associated with legal obligations that establish a direct relationship between QUIRONPREVENCIÓN and the worker of the client company or its suppliers, with healthcare professionals analyzing the documentation provided by the worker and concluding whether they are fit or unfit for work, this conclusion being the only information supplied to their clients."

It emphasizes that Annex VI of the contract, which also governs it, titled "contract for data processing," "was not applied in practice since all COVID documentation was delivered by attendees and workers to QUIRONPREVENCIÓN through its platform, in accordance with what is stated in ANNEX 1B," also of the contract titled: "system integration," in which it is established that "The provider, QUIRONPREVENCIÓN, will have the necessary information system for managing COVID tests," detailing the functionalities, depending on whether it was:

- "Validation of test results," "web for prior test submissions," which specifies that QP "will make available to the event a web- not from FIRA or GSMA- through which the visitor can indicate their data and upload a document or photo of a PCR/antigen result or vaccination/recovery booklet completed previously.

This web will be accessed through a parameter with the participant's identifier. QUIRONPREVENCIÓN will use the identifier to call the API that FIRA will provide and extract the data from the visitor/contractor's accreditation, thus verifying that they are a participant in the event."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

37/96

Upon receiving a document and upon the validation/rejection of a record, FIRA will be notified via the API that FIRA will enable, but not the documents themselves.

"The sending of an email to the interested party directly by QUIRONPREVENCIÓN and not by FIRA or GSMA regarding the validation or rejection of the submitted documents."

In the section "checking results and verification statuses," it is indicated that "QP will enable a functionality in its systems that will allow a user from FIRA to search for an accredited individual and check whether they have a valid negative test or if a previous test has been validated."

5- It states that the role played by QUIRONPREVENCIÓN was that of coordinator of business activities when discussing the processing of data related to occupational risk prevention, such as the communication of data necessary to fulfill coordination obligations when workers from several companies operate in the same workplace, in accordance with Article 24 of the Occupational Risk Prevention Law (LPRL). During the setup phases of the event, there was a concurrence of companies with workers sharing the same workplace. QUIRONPREVENCIÓN, as the exclusive medical partner of MWC 22, performed this function of coordinating business activities, contributing to making the venue a safe working space by conducting medical validation of the health status of attendees and workers, and the communication of conclusions was limited to indicating whether the examined worker was fit or unfit for work at the fairgrounds.

6- It now states that the legal basis for the processing of health data that was processed before, during, and after the event, related to the setup of the facilities for the celebration of the event, carried out by employees of GSMA's suppliers, was compliance with legal obligations regarding occupational risk prevention.

"Health surveillance is mandatory according to Title 22.1 of the Occupational Risk Prevention Law in the following cases that were present during the celebration of Barcelona MWC 22:

- Verification of whether the health status of the worker may pose a danger to themselves, to other workers, or to others related to the company
- Legal obligation concerning the protection against specific risks, such as the biological risk posed by the COVID virus."

The occupational risk prevention regulations provide a dual legitimacy to request health data from visitors and workers providing services at the fairgrounds:

"1- It grants the company, and especially its internal and external prevention service, the authority to decide the most appropriate measures to fulfill the obligation that the workplace is a safe place to work.

This obligation is recognized in the guidelines of the AEPD.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
38/96

2- It contemplates the specific case of biological risk in which the verification of the health status of the worker and visitors to the workplace is expressly provided to confirm that they do not pose a threat to the other workers. This obligation is recognized in the guidelines of the AEPD. In the case of the Barcelona MWC 22, these decisions were made at the time of adopting the applicable health measures in collaboration with health authorities.

It is noted in the document titled on coronavirus prepared by the AEPD that, in application of the labor health regulations for the prevention of occupational risks, employers may process, in accordance with said regulations and with the guarantees established, the personal data necessary to ensure their health and adopt the necessary measures by the competent authorities.

7- As a new allegation made in this procedure, it is stated that the processing of health data of visitors, workers of exhibitors, workers of suppliers, and workers of the organization was necessary for the purposes of preventive or occupational medicine, assessment of the worker's capacity, and medical diagnosis in accordance with Article 9.2 h of the GDPR.

8- Regarding the obligation to inform the interested parties, the infringement of Article 14 would be the application of 14.5 of the GDPR, since the wide dissemination of the measures that were to be applied to prevent the spread of COVID allows for the acceptance and affirmation that the interested party had the information regarding the data that was to be requested, as well as the various collections of press news and dossiers that appeared in the media.

9- It states that it has demonstrated that there is no culpability or lack of diligence necessary to be sanctioned.

10- It states that the right to evidence has been violated since in its allegations it indicated that, if not archived, a period of evidence should be opened, now asserting that testimonial evidence from relevant agents involved in the organization would be proposed, such as different public authorities, and there is an obligation to open said period of evidence.

PROVEN FACTS

FIRST: The defendant, GSMA LIMITED, is a company in the mobile phone industry that groups together more than 750 operators and more than 400 companies, being the organizing entity each year in Barcelona since 2006, of the "MOBILE WORLD CONGRESS (MWC)". The one that took place in 2022 was held for the attending public from 28/02/2022 to 03/03/2022. In 2020, due to the spread of the coronavirus outbreak, it was canceled.

SECOND: For the celebration of MWC 2022, the defendant established an access system for employees of suppliers who perform assembly work.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
39/96

installations during the celebration of the Congress, which required the registration of data on a "digital pass platform" owned by the defendant.

The venue where the MWC is held is called FIRA Gran Vía because it is located on this street and is owned by the FIRA DE BARCELONA consortium (hereinafter FIRA).

The instructions from the defendant for access to the MWC 2022 facilities for the employees of the suppliers for the setup of the installations where the event would take place involved the collection and processing of COVID-19 data, which would be managed by QUIRON PREVENCIÓN SLU (QUIRONPREVENCIÓN) as a sub-processor of FIRA, responsible for processing on behalf of the defendant.

THIRD: According to the emails dated 20 and 21/01/2022 provided by the claimant, FIRA DE

BARCELONA issues instructions for access to the MWC 22 facilities (access pass), informing of the system that will be required, from 23/01/2022 to 08/03/2022, affecting among others, in this case, the employees of the suppliers dedicated to the setup (stands) of the installations.

The system begins with the creation of an account by FIRA for each supplier, from where they will self-manage the passes with a responsible collaborator for the passes of all employees of each supplier. Once the names are uploaded into the system, each collaborator will receive an email link to complete the registration. It is indicated in the email dated 20/01/2022, that when they log in for the first time "your workers will have to create a password. Once this is done, they must upload to the system one of the following documents:

- COVID-19 vaccination certificate (complete schedule), or
- COVID-19 recovery certificate, or
- negative result of a valid COVID-19 test (negative antigen test performed in the last 72 hours during any of the periods—setup, celebration, dismantling)."

Additionally, it is informed that these documents "must be uploaded on the registration system website by each worker for validation."

It is also indicated to the suppliers that they can easily view and generate reports of the workers who have not yet uploaded their documents, to follow up with them.

FOURTH: FIRA INTERNACIONAL DE BARCELONA, with CIF Q-0873006-A, (FIRA) owner of the facilities where the event is held (DOCUMENT 3 a) is, according to its privacy policy, an associative consortium entity for promotion, integrated by the Generalitat de Catalunya, the City Council of Barcelona, and the Official Chamber of Commerce, Industry, and Navigation of Barcelona.

FIRA provides services for MWC Barcelona, of which the defendant is the organizer.

FIRA often holds the status of contractor for the defendant for services and supplies provided within the framework of MWC.

GSMA LIMITED provides a copy of a framework contract dated 22/11/2019, DOCUMENT 3 a, signed with FIRA INTERNACIONAL DE BARCELONA to provide services.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

40/96

related to MWC Barcelona, according to the various work order statements effective from 2020 to 2023. The respondent attaches in annexes the descriptions where the types of data services to be specifically processed by FIRA and the purpose of the data processing assignment are stated.

In allegations to the initiation agreement, the existence of a contract signed on 21/02/2022 by FIRA DE BARCELONA as the processor of the respondent, with QUIRONPREVENCIÓN SLU for MWC 22, organized by GSMA, is evidenced, and that FIRA, by mandate of GSMA, coordinates and manages with the provider designated by GSMA (QUIRONPREVENCIÓN) for the provision of services related to the validation of COVID certificates. Among other services, it includes the integration and communication of results and validation of certified vaccination tests. The contract includes a section with the clauses of the data processor.

FIFTH: The respondent has stated that the procedure established for workers to register the documentation on the platform would be:

Step 1. The provider registers each of its workers on the GSMA platform. The data entered, according to the respondent, as stated in its Data Protection Impact Assessment, would include for each employee: email address, first name, and last name. Additionally, regarding the categories of affected data subjects, only the following data is specified in the data processing assignment contract FIRA-QUIRONPREVENCIÓN, which the respondent makes available, concerning the "participants": "government identification number: DNI, NIE-passport), contact data - phone number" (1.3 of the data processing assignment contract).

Step 2. Once registered, each worker receives a confirmation email from GSMA with a link that facilitates access to their account on the QUIRONPREVENCIÓN platform.

Step 3. Each worker directly provides COVID-19 information through the QUIRONPREVENCIÓN

platform.

Step 4. Each worker receives from QUIRONPREVENCIÓN a confirmation/rejection email for the completion of the registration process on the GSMA platform.

“GSMA IS NOTIFIED whether the person is qualified to access the venue or not.”

SIXTH: When explaining the legal basis for legitimizing the processing of personal data of the employees of the providers, which is the subject of the complaint, the respondent details that given the situation of the epidemic's spread shown by the indicators, it began to foresee the scenario of holding the event from the autumn of 2021, and had to pay attention to the successive resolutions that established temporary measures in public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia (resolutions from the health authority, signed by the Minister of Health and the Minister of Interior) which usually had a validity of 14 days.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

41/96

The respondent stated in the transfer of the claim that on ***DATE.1, it had a Health and Safety Plan for the MWC22, referring to a notice on its website which informs that in execution of said Plan, it reiterates that “attendees” and “workers on the premises” must provide some of the medical documentation that coincides with that stated in the third proven fact, adding that “...the proof of compliance with the protocols will be stored and displayed in the official event application.”

The respondent has not provided a copy of the aforementioned PLAN, which it states in its response to the transfer of the claim was approved in coordination with Catalan health authorities and that it “required collecting personal data such as those that are the subject of the claim.”

SEVENTH: The respondent informs that the basis that legitimizes the processing of data of employees of the suppliers who set up the facilities for the celebration of MWC 22 at the venue where it was to be held is Article 6.1.c), which legitimizes processing when “it is necessary” “for compliance with a legal obligation applicable to the data controller,” stating that this legal norm is the Health and Safety Plan for MWC22, developed in collaboration with the authorities, which has not been provided at any stage of the procedure, and the legal obligations imposed by public health legislation and the measures adopted by health authorities.

It also considers that the aforementioned processing would be covered, “if it were not justified by Article 6.1.c) of the GDPR,” by Article 6.1.d) of the GDPR, insofar as “it is necessary” “to protect vital interests of the data subject or another natural person,” understanding the situation as an emergency, being necessary for humanitarian purposes, including epidemic control.

EIGHTH: Regarding the exception to the prohibition on processing health data that the respondent, as the data controller, manages for the employees of the suppliers who carry out the installation setup, the respondent stated in the response to the transfer that Article 9.2.g) of the GDPR is applicable, considering that the processing “is necessary for reasons of essential public interest based on Union law or the law of the Member States, which must be proportional to the objective pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject,” based on the aforementioned Health and Safety Plan for MWC22 and the Public Health Law 18/2009, of 22/10, applicable to the territorial scope of Catalonia, which provides for the possibility of administrative intervention in the protection of health and disease prevention, both in public and private sectors.

On the other hand, the respondent stated that from October 2021 until the end of 2022, it held meetings with health authorities examining the situation of the evolution of the pandemic and as a result, it provides DOCUMENT 6, health requirements for access to MWC22 protocol 1, dated 27/01/2022, which is a graphic indicating the process in which the installers must upload COVID data. The respondent also supports the lifting of the prohibition on processing health data of employees in its allegations to the initiation agreement, in Article 9.2.i)

C/ Jorge Juan, 6

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of the GDPR (although it is not included in the DPIA dated 22/04/2022); that is: "processing of data necessary for reasons of public interest in the field of public health such as the protection against serious cross-border threats to health, based on Union law or the laws of the Member States that establish adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy," under the protection, as stated by the respondent, of the resolutions of the Departament de Salut which were attached as DOCUMENT 5, "by which measures are established in the field of public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia."

The respondent reiterates that it has limited itself to complying with the regulations in the field of public health and the measures decreed by the health authorities, and also within the framework of the principle of caution required by health legislation.

NINTH: The Health and Safety Plan for MWC22 that is mentioned, allegedly negotiated with the health authorities, has not been provided by the respondent and its content and date are unknown.

MWC22 was held for attendees from 28/02/2022 to 03/03/2022. The instructions for the access of employees of the suppliers to their workplace, such as the claimant, were applicable between 23/01/2022 and 08/03/2022.

The respondent has provided a certificate issued by the entity QUIRONPREVENCIÓN, dated 03/10/2023, which provides a summary regarding the days prior to the start of the event, as well as the first days of the celebration, and provides information on the reports received from 21/02/2022 to 02/03/2022 with a total of 54,779 reports.

TENTH: The resolutions of the applicable health authority between 23/01/2022 and 08/03/2022 were as follows:

RESOLUTION SLT/99/2022, dated 26/01, by which measures are established in the field of public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia.

In this resolution, the restrictive measures on fundamental rights that were still in force are lifted, namely "the limitation of social gatherings and meetings to a maximum of ten people, the limitation on the capacity of religious activities, and the requirement of the COVID certificate for access to certain non-essential activities in closed spaces (restaurants, physical and/or sports activity rooms, gyms, and permitted musical recreational activities: concert halls, café theaters, café concerts, and musical restaurants)."

In section 2.1 "Measures for Individual and Collective Protection," it is established "(...) Both in closed spaces and outdoors, except for groups of cohabiting persons, the interpersonal physical safety distance is set at 1.5 m, in general, with the equivalent of a safety space of 2.5 m² per person, unless more restrictive values are in force for the type of activity. When the development of the activity does not allow maintaining the interpersonal physical safety distance, it is necessary to...

to adopt appropriate hygiene and organizational measures to prevent the risks of contagion.

In outdoor spaces where it is not possible to maintain the required physical interpersonal distance due to the crowding of people, the use of masks is mandatory under the terms established in section 2.3 of this Resolution."

Regarding the "Prevention and hygiene measures in workplaces" in point 3.4, section 2, it is determined "Without prejudice to compliance with occupational risk prevention regulations and other applicable labor regulations, the holders of workplaces, both public and private, must adopt, in the workplaces, among others, the following measures:

a) Adopt organizational measures in working conditions, ensuring the maintenance of the minimum

interpersonal safety distance. And, when this is not possible, appropriate protective equipment must be provided to workers according to the level of risk.

(...)"

RESOLUTION SLT/177/2022, of 2/02, establishing measures in public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia,

In relation to "Individual and collective protection measures," it indicates in point 2.1 "1. (...) Both in enclosed spaces and outdoors, except for groups of cohabiting individuals, the safety distance is set at 1.5 meters, in general, equivalent to a safety space of 2.5 square meters per person, unless more restrictive values are in effect for the type of activity. When the development of the activity does not allow maintaining the safety distance, appropriate hygiene and organizational measures must be adopted to prevent the risks of contagion.

2. The duty of protection established in heading 1 is also enforceable to the holders of any economic, business activity, or public use establishment that is open to the public, under the terms of the organizational, hygiene, and prevention regulations established in this Resolution and, where applicable, the corresponding sectoral plan or organizational protocol. (...)"

It adds in point 3.4: "Prevention and hygiene measures in workplaces"

"(...)"

"2. Without prejudice to compliance with occupational risk prevention regulations and other applicable labor regulations, the holders of workplaces, both public and private, must adopt, in the workplaces, among others, the following measures:

a) Adopt organizational measures in working conditions, ensuring the maintenance of the minimum interpersonal safety distance. And, when

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

44/96

"if this is not possible, appropriate protective equipment must be provided to workers according to the level of risk."

(...)"

RESOLUTION SLT/254/2022, of 9/02, which modifies Resolution SLT/177/2022, of February 2, which establishes measures in public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia

It also includes "2.1 Measures for individual and collective protection

1. Citizens must adopt the necessary measures to avoid the generation of risks of spreading the infection by SARS-CoV-2, as well as their own exposure to these risks, and must adopt individual and collective protection measures based on: frequent hand hygiene; respiratory symptom hygiene (avoiding coughing directly into the air, covering the mouth with the inner side of the forearm in these cases, and avoiding touching the face, nose, and eyes); maintaining a safe distance; wearing a mask as established in section 2.3 of this Resolution; preferring outdoor spaces for activities; ensuring proper ventilation of closed spaces, and cleaning and disinfecting surfaces.

Both in closed spaces and outdoors, except for groups of cohabiting individuals, the safe distance is set at 1.5 meters in general, equivalent to a safety space of 2.5 square meters per person, unless more restrictive values are in effect for the type of activity. When the development of the activity does not allow maintaining the safe distance, appropriate hygiene and organizational measures must be adopted to prevent the risks of contagion."

This resolution does not modify the specific prevention and hygiene measures in workplaces established in RESOLUTION SLT/177/2022, of 2/02.

RESOLUTION SLT/342/2022, of 16/02, which establishes measures in public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia

It also includes in point 2.1 "Measures for individual and collective protection

1. Citizens must adopt the necessary measures to avoid the generation of risks of spreading the

infection by SARS-CoV-2, as well as their own exposure to these risks, and must adopt individual and collective protection measures based on: frequent hand hygiene; respiratory symptom hygiene (avoiding coughing directly into the air, covering the mouth with the inner side of the forearm in these cases, and avoiding touching the face, nose, and eyes); maintaining a safe distance; wearing a mask as established in section 2.3 of this Resolution; preferring outdoor spaces for activities; ensuring proper ventilation of closed spaces, and cleaning and disinfecting surfaces.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
45/96

Both in enclosed spaces and outdoors, except for groups of cohabiting individuals, the safety distance is set at 1.5 meters, generally equivalent to a safety space of 2.5 square meters per person, unless more restrictive values are in effect for the type of activity. When the development of the activity does not allow for maintaining the safety distance, appropriate hygiene and organizational measures must be adopted to prevent the risks of contagion.

RESOLUTION SLT/541/2022, of 2/03, which establishes measures in public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia
It establishes in its point 2.1 "Measures for individual and collective protection

1. Citizens must adopt the necessary measures to avoid generating risks of spreading the infection by SARS-CoV-2, as well as their own exposure to these risks, and must adopt individual and collective protection measures based on: frequent hand hygiene; hygiene for respiratory symptoms (avoiding coughing directly into the air, covering the mouth with the inner elbow in these cases, and avoiding touching the face, nose, and eyes); safety distance; the use of masks under the terms established in section 2.3 of this Resolution; preference for outdoor spaces for carrying out activities; proper ventilation of enclosed spaces, and cleaning and disinfection of surfaces.

Both in enclosed spaces and outdoors, except for groups of cohabiting individuals, the safety distance is set at 1.5 meters, generally equivalent to a safety space of 2.5 square meters per person, unless more restrictive values are in effect for the type of activity. When the development of the activity does not allow for maintaining the safety distance, appropriate hygiene and organizational measures must be adopted to prevent the risks of contagion.

(...)

And 3.4 "Prevention and hygiene measures in workplaces

(...)

2. Without prejudice to compliance with occupational risk prevention regulations and other applicable labor regulations, the owners of workplaces, both public and private, must adopt, in the workplaces, among others, the following measures:

a) Adopt organizational measures in working conditions, ensuring the maintenance of the safety distance. And, when this is not possible, appropriate protective equipment must be provided to workers according to the level of risk. (...)

None of the aforementioned resolutions provide for the submission of COVID certification for any group or sector of activity.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
46/96

ELEVENTH: The respondent has provided in English a Data Protection Impact Assessment regarding the "Processing of health data related to Covid-19 of employees of the suppliers" who must be on-site at the MWC Barcelona 2022 to provide services, dated 22/04/2022, such that it is not evidenced to have been approved prior to the execution of the affected processing (data collection, from 23/01/2022 to 08/03/2022).

In Step 4: "Assess the necessity and proportionality," the aforementioned impact assessment states

the following:

What legal basis will be relied upon to process the data?

“Article 6 of the GDPR

Article

6.1 c) — compliance with a legal obligation

The Committed Community Plan was developed in collaboration with the Catalan public authorities (departments of the Catalan Government, including the Catalan Health Authorities and Proccat) and approved by Proccat.

The Plan is also aligned with the Catalan Action Plans for Covid for Fairs and Congresses (Action Plan for Congresses and Action Plan for Fairs) applicable to GSMA and FIRA, respectively.

The Committed Community Plan includes the requirement for GSMA to request Covid Information.

Under Law 18/2009 on Public Health, health authorities may interfere in public and private activities in order to protect the health of citizens and prevent diseases. GSMA considers that the Committed Community Plan constituted such interference and GSMA believes that the Plan as agreed and approved by the Catalan Health Authorities serves as a mandate to implement Covid-19 measures at the MWC Event in order to prevent the spread of Covid-19, including the collection of information regarding COVID-19. GSMA is legally obliged to comply with the instructions of health authorities and, therefore,

Article

6, letter d), vital interest of the data subject. To the extent that the previous reason is not applicable, GSMA relies on this legal basis for the processing of Covid information. We consider i) Recital 46 of the GDPR, which explicitly states that organizations may rely on this legal basis for processing when necessary to protect the vital interests of a person or group, including the monitoring of epidemics and their spread; and ii) the recognition by the Spanish Data Protection Agency that this legal basis may be used for the processing of personal data related to Covid-19.

Article 9 of the GDPR

Article

9, paragraph

2, letter q): substantial public interest based on Union Law or Spanish Law. GSMA was legally obliged to comply with the instructions of health authorities and, therefore, to develop and comply with the Committed Community Plan (see previous references).

Can the desired outcome be achieved by processing fewer data?

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

47/96

No. GSMA has committed to processing the minimum amount of personal data necessary to achieve the purposes of processing. The scope of the data, as well as the processing activities (i.e., GSMA did not have access to the Covid Information, which was only accessed by its subprocessors, QUIRONPREVENCIÓN, and processed entirely on the Platform) have been established in accordance with the principle of data minimization.

****How will you provide transparency to individuals?****

Privacy notice provided to individuals by their employer on behalf of GSMA before their data is shared by the employer with the GSMA processor/GSMA. According to the Contractor Registration Terms and Conditions, suppliers are required to contractually commit to comply with all transparency and legality obligations before sharing their employees' data with GSMA, including providing the Privacy Notice to all relevant employees before sharing.

****How will you allow data subjects to exercise their rights?****

The rights of data subjects and how they can be exercised are detailed in the Privacy Notice.

****How will you ensure compliance with data protection by suppliers?****

Contractual commitments in the relevant data processing agreements, including the provisions required by Article 28 of the GDPR.

****What measures will you take to ensure compliance with data export regulations?**** (unofficial translation)

This section assesses the following risks: (i) Unauthorized disclosure of sensitive personal data of employees by the subprocessors QUIRONPREVENCIÓN (ii) The collection of more sensitive personal data than required (iii) Personal data will be retained longer than necessary (iv) Reliance on the identified legal basis of legitimate interest for processing (v) Claim regarding the decision to deny entry to an employee of a supplier based on Covid information. (vi) Not providing sufficient information to individuals (vii) Sufficient non-compliance with a request from data subjects (DSR) (viii) Scope creep: the risk that Covid Information is used for any purpose beyond what has been provided for in this DPIA (ix) Processing of excessive personal data (unofficial translation)

****TWELFTH**** Regarding the purpose of processing, the respondent indicated that it was to protect attendees and employees by ensuring a safe and healthy environment for all, preventing the spread of the virus, "as a serious cross-border threat to public health in the manner required under the agreed and approved Plan by health authorities," indicating that during the four days of the Congress, 61,000 people accessed as attendees, and 11,970 people as employees, acknowledging that all of them were required to have the COVID certificate system.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
48/96

The processing and retention of the collected data is necessary, according to the respondent, because after collecting the data from employees, it must be analyzed by the sub-processor, QUIRONPREVENCIÓN, to determine whether the documentation provided regarding COVID-19 is valid, as the information must be verified. For example: whether the individual has received all doses, whether they are within the effective period of the vaccine, or whether the certificate was issued by an officially recognized authority. Furthermore, the collection and retention of the data is carried out because it serves as a pass to the facility, facilitating access, with the respondent acknowledging that if a positive case arises, the pass could be invalidated.

THIRTEENTH: Regarding the guarantees for the protection of the rights and freedoms of individuals, the respondent attached:

- the security measures applied by QUIRONPREVENCIÓN, stating that the data was not accessible to the data controller, as it was collected directly by QUIRONPREVENCIÓN, which analyzed it and confirmed whether the individual was fit or unfit to access, a fact that was communicated to the responsible party, the organizer of the access system for attendees and employees of suppliers. It is also evidenced that the respondent, prior to accessing the health data registered in relation to COVID-19, had recorded the data of the employees of the suppliers (at least name and surname, supplier, DNI-NIF, email).

- An EIPD dated 22/04/2022, when the data of the employees began to be required from 23/01/2022, in which it is not evidenced that the action of the Data Protection Delegation was involved, and it does not state that one of the points to be covered was the risk assessment for the rights and freedoms of the data subjects, as well as the necessity and proportionality of the health data processing operations concerning their purpose. There is also no mention regarding the employees of the suppliers who carry out the assembly of the facilities where the event is held, nor is there any reference to the right to work as an affected right, and the potential prohibition of access to the workplace or the relationship with the right to the prevention of occupational risks.

FOURTEENTH: Regarding the information provided about the processing of data of the employees of the suppliers, and of the claimant in particular, the respondent in its response to the transfer and also as stated in the EIPD indicated that it is the responsibility of the employer supplier, "as GSMA does not have direct contact with the workers," adding that in "the contract between GSMA and the supplier (which is also not provided) requires compliance with applicable laws regarding data protection, including transparency and legality for the purpose of transferring the data of their workers to GSMA or its processors, including the provision of GSMA's privacy policy to its workers, which is provided to the

suppliers.” In the EIPD, it is also added in the risk assessment the issue of: “Not providing sufficient information to individuals,” “GSMA ensures that employees of the suppliers are provided with the Privacy Notice before their data is shared by their employer with GSMA. According to the Contractor Registration Terms and Conditions, suppliers are contractually obligated to comply with all obligations of transparency and legality before sharing their employees' data with GSMA, including the provision of GSMA's Privacy Notice to all.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
49/96

employees before sharing.” It is categorized as: high in severity of risk, remote in probability, and overall risk: low. Information about rights is also included in the Privacy Policy.”

“The rights of the data subjects and how they can be exercised are detailed in the Privacy Notice.”

It should be mentioned that while the privacy policy listed on the respondent's website, version 22 04 2021, includes as a collective to which data processing applies: among others, third parties, or personnel of third parties and other individuals participating in the event or “the bulk contractor loading system,” it is specified in another clause “Information obtained from third parties,” which states: “From time to time, GSMA receives personal information from third parties. This may occur, for example, if your employer is a member of GSMA and registers you for an event or training, or if your employer (or entity for which you are contracted as a contractor or temporary staff) provides services to GSMA and you participate in the provision of these services.”

It is true that the claimant's data and the data of the employees of the suppliers were entered by the employers, suppliers of the respondent, into an application of theirs, and that subsequently this contacted each employee via email, it is not recorded that at either of the two moments or subsequently, the respondent informed the affected parties in compliance with the obligation set forth in Article 14 of the GDPR.

Furthermore, it is noted that in the privacy policy, being comprehensive of various subjects participating in the event, in “Data Retention,” it does not detail the retention of the data collected from the employees of the suppliers, urging to contact for more information and does not specify what legitimizing basis corresponds specifically to the processing of each type of attendee/employee, stating it in a general and abstract manner without identifying the collectives referred to, nor the right to lodge a complaint with a supervisory authority, as well as the source from which the data originates, nor the contact details of the Data Protection Officer.

Additionally, in “information provided voluntarily,” it states “COVID-19 tests: As indicated in our Committed Community Plan, you will be required to undergo COVID-19 testing at regular intervals during the event. The information about your test results will be processed solely for the purpose of access control,” not mentioning the requirement for vaccination or COVID certificate, which moreover was not voluntary for employees.

LEGAL GROUNDS

I. Jurisdiction

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
50/96

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this

organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II Preliminary Issues

Starting from the GDPR, Article 4 of the GDPR indicates: "The following definitions shall apply:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;

7) 'controller' or 'data controller': the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union law or the law of the Member States, the controller or the specific criteria for its designation may be provided for by Union law or the law of the Member States;"

8) 'processor' or 'data processor': the natural or legal person, public authority, agency or other body which processes personal data on behalf of the controller"

...

"15) data concerning health: personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about their health status;"

Recital 35 of the GDPR refers to health data in the following terms:

"Health-related personal data should include all data concerning the health status of the data subject that provides information about their past, present, or future physical or mental health. This includes information about the natural person collected in the context of their registration for health care purposes, or in the context of the provision of such care, in accordance with Directive 2011/24/EU of the..."

C/ Jorge Juan, 6

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28001 – Madrid

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51/96

European Parliament and Council (1); any number, symbol, or data assigned to a natural person that uniquely identifies them for health purposes; information obtained from tests or examinations of a part of the body or a bodily substance, including that derived from genetic data and biological samples, and any information related, for example, to a disease, a disability, the risk of suffering from diseases, medical history, clinical treatment, or the physiological or biomedical status of the individual concerned, regardless of its source, for example, a doctor or other healthcare professional, a hospital, a medical device, or an in vitro diagnostic test.

In short, Recital 35 of the GDPR states that "the information about the natural person collected in connection with their registration for health care purposes, or in connection with the provision of such care, in accordance with Directive 2011/24/EU of the European Parliament and of the Council" is included in the special category of health data.

Directive 2011/24/EU, to which Recital 35 refers, indicates in its Article 3, "Definitions," what is meant by: "a) : services related to health provided by a healthcare professional to patients to assess, maintain, or restore their state of health, including the prescription, dispensing, and provision of medicines and health products."

Article 3 of Directive 2011/24/EU also defines, in paragraphs f) and i), respectively, what is meant by "healthcare professional" and "medicines."

Paragraph f) defines “healthcare professional” as “any doctor of medicine, nurse responsible for general care, dentist, midwife, or pharmacist as provided for in Directive 2005/36/EC or any other professional who performs activities in the healthcare sector that are restricted to a regulated profession as defined in Article 3, paragraph 1, letter a), of Directive 2005/36/EC, or any person considered a healthcare professional under the legislation of the Member State of treatment;” In this regard, it should be noted that Law 44/2003, of 21/11, on the regulation of the healthcare profession, qualifies as “healthcare professionals,” among others, Graduates in Nursing (Article 2) and Technicians in Auxiliary Nursing Care (Article 3).

And paragraph i) of Article 3 of Directive 2011/24/EU defines “medicines” as “any medicine as defined in Directive 2001/83/EC.” In turn, Directive 2001/83/EC of the European Parliament and of the Council, of 6/11/2001, establishing a Community code on medicinal products for human use, in its Article 1.2 defines “medicines” as “a) any substance or combination of substances presented as having properties for treating or preventing diseases in human beings, or b) any substance or combination of substances that may be used in, or administered to human beings for the purpose of restoring, correcting, or modifying physiological functions by exerting a pharmacological, immunological, or metabolic action, or to establish a medical diagnosis.”

In light of the provisions cited, the vaccination of a person against COVID-19 involves the provision of a health care service; a service provided by

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

52/96

who, in accordance with Spanish legislation, Law 44/2003, are considered healthcare professionals and through which a medication is dispensed, as defined in Article 1.2 of Directive 2001/83/EC.

Consequently, the information regarding whether an identified individual has received the Covid-19 vaccine or not is classified as personal data related to health.

Thus, the information collected and retained by the respondent regarding the COVID-19 vaccination of employees or the result of a PCR test or the certificate of recovery from the disease constitutes a “processing” of “personal data” related to the “health” of an individual.

On the other hand, it is worth noting in relation to the respondent’s allegation that the instructor should have opened a period for the practice of evidence, given that the respondent proposed the following: “for the hypothetical case that the administrative sanctioning file is not archived immediately, and in accordance with the provisions of Article 77 of Law 39/2015, this Instructor shall agree to open a period of evidence and grant this party the opportunity to propose the corresponding means,” indicating in their second and third allegations regarding the initiation agreement that “the documents attached here will be proposed...”. Regarding this matter, it should be indicated that Article 77 of the LPACAP states:

“1. The relevant facts for the decision of a procedure may be accredited by any admissible means of evidence in law, whose assessment shall be carried out in accordance with the criteria established in Law 1/2000, of January 7, on Civil Procedure.

2. When the Administration does not consider the facts alleged by the interested parties to be certain or the nature of the procedure requires it, the instructor shall agree to open a period of evidence for a period not exceeding thirty days nor less than ten, in order for as many as deemed pertinent to be practiced. Likewise, when deemed necessary, the instructor, at the request of the interested parties, may decide to open an extraordinary period of evidence for a period not exceeding ten days.

3. The instructor of the procedure may only reject the evidence proposed by the interested parties when they are manifestly inappropriate or unnecessary, by means of a reasoned resolution.”

Article 78 states:

“1. The Administration shall notify the interested parties, with sufficient advance notice, of the commencement of the necessary actions for the carrying out of the evidence that has been admitted.

2. The notification shall specify the place, date, and time at which the evidence will be practiced, with the warning, where appropriate, that the interested party may appoint technicians to assist them.”

- The documents and allegations presented by the respondent have been considered and evaluated in the drafting of the resolution proposal; they have not been inadmissible.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
53/96

The respondent expressly did not request that any specific evidence be presented nor its purpose, nor did it add in this regard that a third party be requested to carry out or request any evidence that could specify that practice of evidence.

- Furthermore, the respondent did not specifically request the presentation of any evidence either during the period of allegations or after this period, and in any case before the proposal for resolution in which the facts must be evaluated, in accordance with Article 89.3 of the LPACAP. Once the proposal for resolution has been issued, it is not possible to propose evidence. The respondent, in each allegation made, actually presented the documents it deemed appropriate and could have presented those it considered convenient for its rights. The specification of a proposal for evidence, had it occurred, would have allowed for the assessment of its relevance to the case, and it was not necessary to open a period for the presentation of evidence solely to incorporate the documentation that the respondent indicated should be taken into account.

The Instructor did not find any elements that fell within those indicated in Article 77.2 of the LPCAP to open a period for the presentation of evidence; therefore, there is no obligation to communicate to the respondent the reasons for not opening such a period for evidence.

The elements considered in the proposal only relate to the actions of the respondent, the documents it itself provided, without considering that facts and allegations from third parties are included in the proceedings. Once the proposal for resolution was issued, the respondent also did not request the presentation of any evidence.

The fact that a period for evidence was not opened does not indicate that the respondent has suffered any defenselessness, as it has been able to allege what it deemed appropriate for its rights throughout the entire procedure.

III On the processing of health data

According to Recital 1 of the GDPR: "the protection of natural persons in relation to the processing of personal data is a fundamental right. Article 8, paragraph 1, of the Charter of Fundamental Rights of the European Union [...] and Article 16, paragraph 1, of the Treaty on the Functioning of the European Union (TFEU) establish that everyone has the right to the protection of personal data concerning them."

As indicated in Recital 53, health data deserves greater protection, as the use of such sensitive data can have significant negative repercussions for the individuals concerned. In light of the above and the relevant case law of the Court of Justice of the European Union (CJEU), it is considered that the term "health data" should be interpreted broadly.

Health data can be obtained from various sources, including a medical history, a "self-check" survey, in which individuals respond to questions related to their health (for example, a declaration of symptoms), being the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
54/96

vaccination or the result of a PCR test, data concerning the individual's health, which in this case is requested from the affected party with the collaboration of the provider of the respondent. The consequences of not providing such data could be that access to the location of the service provision, facilities where the respondent organizes MWC 2022, would not be permitted.

Any processing of personal data related to health must comply with the relevant principles established in Article 5 of the GDPR, adhere to one of the legal bases set out in Article 6, and to one of the specific

exceptions listed, respectively, in Article 9 of the GDPR, for the lawfulness of processing this special category of personal data.

This was already indicated by the Article 29 Working Party (whose functions have been assumed by the European Data Protection Board) in the “Guidelines on Automated Individual Decision-Making and Profiling for the Purposes of Regulation 2016/679” adopted on 3/10/2017, revised on 6/02/2018, stating that (...) “Data controllers may only process special category personal data if one of the conditions laid down in Article 9, paragraph 2, is met, as well as a condition from Article 6(...), and more recently, the European Data Protection Board in its “Guidelines 03/2020 on the Processing of Health Data for Scientific Research Purposes in the Context of the COVID-19 Outbreak, adopted on April 21, 2020.”

This criterion is further supported by the Judgment of the CJEU, dated 21/12/2023, case C-667/21, concerning a situation examining an exception to the application of Article 9 of the GDPR, in the ruling, point 1.3, with the wording: “Articles 9, paragraph 2, letter h), and 6, paragraph 1, of Regulation 2016/679 must be interpreted as meaning that processing of health data based on this first provision must, in order to be lawful, not only meet the requirements arising from it but also, at least, one of the lawfulness conditions stated in that Article 6, paragraph 1, according to the analysis carried out in paragraphs 71 to 78.”

The GDPR dedicates Article 5 to the principles governing the processing of personal data and establishes in paragraph 1:

“1. Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (<>.
(...)”

Article 5.2 states that: “The data controller shall be responsible for compliance with the provisions of paragraph 1 and able to demonstrate it (<>.”

Article 70 of the LOPDGDGDD establishes the responsible subjects, stating:

“1. They are subject to the sanctioning regime established in Regulation (EU) 2016/679 and in this organic law:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

55/96

a)

The controllers of the processing.

(...)”

The GDPR, Article 9.1, generally prohibits the processing of “special categories of data,” including those related to health. However, paragraph 2 of the provision introduces ten exceptions; ten scenarios in which the prohibition on processing may be lifted if any of them apply. These circumstances that exempt the general prohibition rule are connected with “any” of the legal bases that, according to Article 6.1 of the GDPR, legitimize the processing of data.

The Report of the Legal Department of the AEPD 0017/2020 states that “generally, it should be clarified that the personal data protection regulations, as they are aimed at safeguarding a fundamental right, apply in their entirety to the current situation, given that there is no reason to determine the suspension of fundamental rights, nor has such a measure been adopted.” and “recognizes that, in exceptional situations, such as an epidemic, the legal basis for processing may be multiple, based both on public interest and on the vital interest of the data subject or another natural person.” This, “without prejudice to the existence of other bases, such as compliance with a legal obligation, art. 6.1.c) GDPR (for the employer in the prevention of occupational risks for their employees)”

Regarding the exceptions of Article 9.2 GDPR, the aforementioned report, after its analysis, determines that: “Consequently, in a situation of health emergency [...] the application of personal data protection regulations would allow the data controller to make those decisions necessary to safeguard the vital interests of natural persons, compliance with legal obligations, or the safeguarding of essential

interests in the field of public health, within the framework established by the applicable material regulations.”

And finally, it reasons as follows:

“But the data controllers, while acting to safeguard such interests, must act in accordance with what the authorities established in the regulations of the corresponding Member State, in this case Spain, establish.”

Thus, the Spanish legislator has equipped itself with the necessary legal measures to face health risk situations, such as Organic Law 3/1986, of 14/04, on Special Measures in Public Health (amended by Royal Decree-Law 6/2020, of 10/03, which adopts certain urgent measures in the economic field and for the protection of public health, published in the Official State Gazette on 11/03/2020) or Law 33/2011, of 4/10, General Public Health.

Article 3 of the first of these regulations states that:

“In order to control communicable diseases, the health authority, in addition to carrying out general preventive actions, may adopt the appropriate measures for the control of the sick, of persons who are or have been in contact with them, and of the immediate environment, as well as those deemed necessary in case of risk of a transmissible nature.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

56/96

Similarly, Articles 5 and 84 of Law 33/2011, of 4/10, General Public Health, refer to the previous Organic Law 3/1986, and to the possibility of adopting additional measures in case of risk of disease transmission.

Therefore, in matters of risk of disease transmission, epidemics, health crises, etc., the applicable regulations have granted “the health authorities of the different public administrations” (Art. 1 Organic Law 3/1986, of 14/04) the competencies to adopt the necessary measures provided for in these laws when urgent or necessary health reasons so require.

Consequently, from a personal data processing perspective, the safeguarding of essential interests in the field of public health corresponds to the various health authorities of the different public administrations, who may adopt the necessary measures to safeguard these essential public interests in situations of public health emergency.

It will be these competent health authorities of the different public administrations who must make the necessary decisions, and the various data controllers must follow these instructions, even when this involves processing personal health data of individuals. The above expressly refers to the possibility of processing the personal health data of certain individuals by the data controllers when, at the indication of the competent health authorities, it is necessary to inform other individuals with whom that person has been in contact about the circumstance of their contagion, in order to safeguard both those individuals from the possibility of contagion (their vital interests) and to prevent those individuals, due to ignorance of their contact with an infected person, from spreading the disease to other third parties (the vital interests of third parties and essential and/or qualified public interest in the field of public health).

However, as indicated in the aforementioned report, the processing of personal data in these public health emergency situations continues to be governed by personal data protection regulations (GDPR and Organic Law 3/2018, of 5/12, on Personal Data Protection and Guarantee of Digital Rights, LOPDGDD), so all its principles, contained in Article 5 of the GDPR, apply, including the principle of lawful, fair, and transparent processing of personal data, limitation of purpose (in this case, to safeguard the vital/essential interests of individuals), principle of accuracy, and of course, it must be emphasized, the principle of data minimization.

Regarding this last aspect, it must be expressly stated that the data processed must be exclusively limited to what is necessary for the intended purpose, and such processing cannot extend to any other personal data that is not strictly necessary for that purpose.

Therefore, data protection regulations (such as the GDPR) do not hinder the measures adopted to

combat the COVID-19 pandemic. The GDPR is a far-reaching legislative act and includes various provisions that allow for the management of data processing.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
57/96

personal data related to the COVID-19 pandemic without prejudice to fundamental rights and the protection of personal data.

Therefore, when applying the provisions established for these cases in the GDPR, in accordance with the applicable sectoral regulations in the field of public health, considerations related to data protection—within the limits set by law—should not be used to hinder or limit the effectiveness of the measures adopted by the authorities, especially health authorities, in the fight against the epidemic. Royal Decree 463/2020, of 14/03, and the measures contained therein, as well as those established in the successive royal decrees extending the state of alarm, have constituted the basic regulatory framework of the regulations adopted to address the health emergency caused by the pandemic. In Spain, it must be established that the COVID-19 vaccine is not mandatory and that its establishment as mandatory could infringe constitutionally recognized rights. The COVID certificate was not established as mandatory for workers, and it has not been demonstrated that health authorities have mandated that a specific group be required to comply with the measures adopted by the respondent that could lead to mandatory vaccination, in this case, for employees involved in the assembly of the MWC22 Congress. As an example of a similar case to what is stated, it is worth highlighting the ruling of the Supreme Court, Fourth Chamber, Social Section, ruling 562/2021, of 20/05/2021, rec 130/2020, which establishes the lack of regulatory obligation to require rapid antibody detection tests for technical personnel in sanitary transport and drivers who had been in direct or indirect contact with COVID patients.

On the other hand, regarding the allegations of the respondent following the proposal, it should be noted that in matters of occupational risk prevention, it is the employer who is obliged to ensure the physical integrity of workers, in accordance with the specific parameters in each risk situation in the context of the Coronavirus pandemic, and in this case, the supplying companies have played no role in this regard, as they were imposed by the organizer and respondent the requirement to register their employees in order for them to upload health documentation to access the workplaces.

The data controller also does not appear to have coordinated the actions of the various suppliers that employed their staff at the venue where the data controller would carry out the activity.

For access to their workplace, which coincides with the location where the event is held, these workers were required to possess the COVID certificate or, failing that, provide a recovery certificate from the illness or a PCR test, which has a limited temporal validity and would require the worker to provide several PCR tests, which could affect their fundamental rights to work, physical integrity, health, and data protection.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
58/96

The Organic Law 3/1986 of 14/04, on special measures in public health establishes:

“Article One. In order to protect public health and prevent its loss or deterioration, the health authorities of the different Public Administrations may, within the scope of their competencies, adopt the measures provided for in this Law when urgent or necessary health reasons so require.”

...

“Article Three. In order to control communicable diseases, the health authority, in addition to carrying out general preventive actions, may adopt the appropriate measures for the control of patients, of persons who are or have been in contact with them, and of the immediate environment, as well as those deemed necessary in case of a transmissible risk.”

Furthermore, the COVID-19 vaccination strategy of 2/12/2020 is the regulation that develops coordination among health authorities and reinforces the functioning of the entire national health system and does not provide for vaccination against COVID-19 as mandatory.

Order SND/344/2020, of 13/04, which establishes exceptional measures for the reinforcement of the National Health System and the containment of the health crisis caused by COVID-19, establishes that the indication for the performance of diagnostic tests for the detection of COVID-19 must be prescribed by a qualified professional in accordance with the guidelines, instructions, and criteria agreed upon for this purpose by the competent health authority.

Decree 63/2020 of 18/06, on the new governance of the health emergency caused by COVID-19 and the commencement of the resumption phase in the territory of Catalonia, DOGC of 19, determines in its article 1, effective from 19/06/2020, the conclusion of phase III of the Plan for the de-escalation of the extraordinary measures adopted to address the pandemic generated by COVID-19 throughout the territory of Catalonia. In its article 5, it empowers the "Minister of Health and the Minister of Interior, in their capacity as authorities comprising the Steering Committee of the PROCICAT action plan for emergencies associated with emerging communicable diseases with high-risk potential, to adopt the necessary resolutions to make effective the measures that will govern the new phase that begins."

On the same date, 18/06/2020, RESOLUTION SLT/1429/2020, of 18/06, is issued, by which basic protective and organizational measures are adopted to prevent the risk of transmission and promote the containment of infection by SARS-CoV-2. (DOGC 19-06-2020). This regulation states in its preamble that it aims to ensure that activities that may generate a higher risk of community transmission are carried out under conditions that allow for the prevention of contagion risks and possible outbreaks, associating risk factors in transmission, development in activities in closed spaces, participation of high density of people, and long duration over time. The resolution establishes general measures. In its article 1.2, it indicates that the measures of the resolution must be complemented with sectoral activity plans, among other sectors, it cites that of Fairs, Congresses, and other temporary activities with large public attendance.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

59/96

As of the date of the MWC 22, the Special Emergency Plan for Pandemics in Catalonia was in force, approved by the Government Agreement 40/2020 of 3/03. This provision establishes that public gatherings include Congresses, Conventions, and Trade Fairs, where measures must be taken according to the evolution of the emergency, and it may be necessary to propose partial restrictions or suspension of certain activities in places of public gathering.

The resolutions issued successively regarding public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia indicate that "The administrative intervention in public and private activities necessary to address the health crisis caused by COVID-19 is justified within the framework of health and civil protection laws, subject to the additional guarantee of judicial control concerning the proportionality assessment of measures affecting fundamental rights." According to Auto TSJ CAT 869/2021, of 25/11/2021, rec 509/2021: "The ratification system - judicial authorization of public health administrative measures, modified by Law 3/2020, of September 18, on procedural and organizational measures to address COVID-19 in the field of the Administration of Justice, reworded Article 8.6 of the LJCA and introduced Articles 10.8 and 11.1.i) into said Law, characterized by a procedure that does not have a contradictory nature, as it does not involve opposing procedural parties, but operates as a limited, preferential, and summary cognition procedure, incorporated into the jurisdictional protection of fundamental rights, aimed at the judicial authorization or ratification of measures limiting fundamental rights, adopted for public health reasons.

This Auto ratifies the measures contained in resolution SLT/3512/2021, of 25/11, for the requirement of COVID documents in the circumstances contained and the scope of activities expressly provided for by the regulation, which does not include Congresses. This regulation contemplates the exhibition of documentation, without referring to the retention of data from COVID certificates.

The aforementioned Auto reiterates what is reproduced in the ruling of TS 1112/2021, of 14/09, that "the right to data protection protects any information relating to a person, and may be concerned if we understood that the circumstance of having been vaccinated or not was a personal data, which, although it does not belong to the intimate sphere of the person, is still a data related to privacy, which is especially protected when it is subject to processing."

Furthermore, the Auto conducts a triple proportionality assessment of the measures contained in the administrative resolution concerning the fundamental rights deemed compromised, and authorizes the measures, not without first indicating that "it is worth noting that the unrestrained addition of more and more activities is reaching a level that will require at least greater motivation and reinforced justification within the framework of the related doctrine."

However, in RESOLUTION SLT/99/2022, of 26/01, the restrictive measures on fundamental rights that were still in force were lifted, including the requirement of the COVID certificate for access to certain non-essential activities in closed spaces (restaurants, physical activity and/or sports rooms, gyms, and...

60/96

Permitted recreational musical activities: concert halls, theater cafés, concert cafés, and musical restaurants.

The resolutions issued by the Catalan health authorities in their statement of reasons indicated:

"The adoption of these measures by the competent authorities is supported by Organic Law 3/1986, of April 14, on special measures in public health, in the rest of the health and public health legislation, in civil protection legislation, and specifically, in Decree Law 27/2020, of July 13, which modifies Law 18/2009, of October 22, on public health and adopts urgent measures to address the risk of outbreaks of COVID-19.

Through Decree Law 27/2020, of July 13, the administrative intervention measures that can be adopted in pandemic situations to ensure the control of infections were specified, and the procedure to be followed for their adoption was delineated. Specifically, a letter k) was added to Article 55 of Law 18/2009, of October 22, on public health, which provides that, in situations of pandemic or epidemic declared by the competent authorities, the competent health authorities may adopt measures to limit activity, the movement of persons, and the provision of services in certain territorial areas as provided in Annex 3, in accordance with the procedure established in Article 55 bis.

The administrative intervention in public and private activities necessary to address the health crisis caused by COVID-19 is justified within the aforementioned framework of health and civil protection laws, subject to the additional guarantee of judicial control regarding the proportionality assessment of measures that affect fundamental rights.

Decree Law 27/2020 establishes in Article 55 bis 2 that "In the event that mandatory measures are established, express notice of this obligation must be given, which will be based on the reports issued." The resolutions in force during the event did not contemplate an event like MWC 22, nor was there any mention or establishment of COVID certificates for access to establishments.

In the present case, various types of data from the employees of the suppliers have been collected, including initial data such as name and surname, DNI/NIF, email provided by their employers, suppliers of the defendant, and other special data related to health concerning COVID-19 provided by the workers themselves. Both types of data were processed by the defendant, who is responsible for the processing.

The defendant did not assess the restriction that the imposed measure entails for the rights of the workers, and this measure must be distinguished from the measure imposed on the attendees of MWC22 since the impact on rights is different. However, the defendant did not even analyze this issue with the necessary depth in its DPIA.

IV On the allegations regarding the proposed resolution

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

61/96

Regarding the allegation made by the defendant following the proposal, concerning the purported differentiation also in its contents between a main contract and another for a subcontractor of data processing, it must be clarified and based on the premise that the aforementioned document 4 provided by the defendant constitutes a unit of action in which the object is expressly stated in its first clause, and in the second, the application of the ANNEXES that are part of the contract. These six ANNEXES include the SIXTH: "contract of data processor," but referring to the object established in the first clause of the contract.

The defendant indicates that the contract with QP would only cover the validation of COVID certificates (including vaccination, recovery, or tests), and, specifically, the performance of "rapid antigen/PCR tests in the event that FIRA requests it." Naturally, each of the documents to be validated had to meet certain requirements; for example, the vaccination had to have been administered on a specific date for its validity, certified, as well as the documentation for the recovery from the illness had its own requirements.

To this end, ANNEX 1B of the contract: "system integration," states that "The provider will have an information system necessary for the management of COVID tests," differentiating TWO functionalities: that of "conducting tests on-site," which it does not appear was applied as a general rule to the employees of the assembly providers, and that of "validation of test results." The documentation was incorporated through, according to the defendant, a "web (mobile-adapted) for prior test submissions," through which the visitor can indicate their data and upload a document or photo of a PCR/antigen result or vaccination/recovery booklet completed previously.

The defendant has stated that, in addition to this service, in what she calls the "main contract," a series of services are "included" that are enumerated in the same point 1.1 of the object of the contract, which would be the following:

- The medical validation of COVID certificates (it seems to be reiterated as it is contained in the contract of assignment),
- The contact and "medical examination of the worker" (not contained in the object of the contract, which also uses the terminology "participant in the event," nothing referring to the worker), and
- "Hospital care service (24/7) through the network of Quirón Salud centers for all participants in MWC22," which, apart from not mentioning employees,

Services for which the defendant states that QUIRONPREVENCIÓN would be responsible for the processing.

QUIRONPREVENCIÓN, according to the defendant, would act in compliance with a legal obligation and would be responsible for its medical decisions, whether to grant or deny access to the workplace or for attendees to the venue.

In this regard, it should be noted that, for QUIRONPREVENCIÓN to issue this result, the defendant has previously carried out operations of personal data processing, as it has collected the data and established that their holders provide.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
62/96

your health data to your data processor who has your consent regarding the services offered. The decision on whether one is fit or not is known by the responsible party because the contract establishes its communication from QUIRONPREVENCIÓN to its agent, FIRA, which acts on behalf of the responsible party. Thus, the defendant, who decided that the data should be collected and retained to facilitate the respective accesses throughout the duration of the event (attendees in the case of vaccination) or the setup (employees in the case of vaccination), and similarly regarding the certificates of recovery from the disease.

Therefore, even if the defendant's thesis that QUIRONPREVENCIÓN is responsible for the medical treatments were to succeed, it is the defendant who made the decision on which medical data should be collected and for what purpose, and who contracted the processing of such health data of the workers with QUIRONPREVENCIÓN, making it responsible for the infringements attributed to it.

On the other hand, arguing that QUIRONPREVENCIÓN is responsible for the processing, also because it would contribute to the medical history of each affected individual, fulfilling an ethical duty by dealing directly with the affected individuals, contradicts the fact that the task is limited to a verification or confirmation of documents, sent via mobile through a platform of QUIRONPREVENCIÓN, and it is not clear that the employees of the suppliers who carry out the installation setup, nor by extension the attendees, are patients or users of the aforementioned QUIRONPREVENCIÓN, without any medical assistance of any kind being provided to these employees, and therefore without conducting any medical tests on the affected individuals. Regarding the allegation made after the proposal that the open content of the contract allowed for QUIRONPREVENCIÓN to incorporate tasks or services related to supporting the coordination of business activities aimed at preventing occupational risks, which were not included in the data processing contract, it should be noted that, in addition to not expressly or specifically stating any aspect in the contract signed with QUIRONPREVENCIÓN or its annexes regarding this aspect, such coordination work does not seem to be real, as it would not only lack evidence of the participation of the companies being coordinated, but it also does not fit the operational framework established for the prevention of occupational risks by the LPRL and its implementing regulations.

The Occupational Risk Prevention Law, as can be inferred from the reading of Article 24 of Law 31/1985, of 8/11, on Occupational Risk Prevention, states:

“1. When workers from two or more companies carry out activities in the same workplace, they must cooperate in the application of the regulations on occupational risk prevention. To this end, they will establish the necessary coordination means regarding the protection and prevention of occupational risks and the information about them to their respective workers, in the terms provided in paragraph 1 of Article 18 of this law.

2. The employer who owns the workplace shall take the necessary measures to ensure that those other employers who carry out activities in their workplace receive the appropriate information and instructions regarding the existing risks in the...”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

63/96

work center and with the corresponding protection and prevention measures, as well as the emergency measures to be applied for their transfer to their respective workers.

3. Companies that hire or subcontract others for the execution of works or services related to their own activity and that take place in their own work centers must monitor compliance by these contractors and subcontractors with the regulations on occupational risk prevention.

4. The obligations set forth in the last paragraph of section 1 of Article 41 of this Law shall also apply, regarding the contracted operations, in cases where the workers of the contracting or subcontracting company do not provide services at the work centers of the main company, as long as such workers must operate machinery, equipment, products, raw materials, or tools provided by the main company.”

The information about vaccines and the other COVID documents that employees were required to provide or that are proven to be the result of that coordination activity, and if it is proven that they were provided by the employees if they wanted to render their services, exercising their right to work at the physical location where the event was to take place. On the other hand, the role of the coordinator of business activities cannot include making individual decisions about the preventive measures that must be adopted, as clarified by the provision of Article 24 of the LPRL, which provides that the parties involved “will cooperate,” “will establish means of coordination” on the part of the employer who owns the work center and the companies that operate in the same space of the work center.

Thus, this thesis that coordination actions were developed regarding occupational risks that involved the treatment in question cannot be accepted.

On the other hand, regarding the allegation that “the occupational risk prevention regulations provide a double legitimacy to request health data from visitors and workers providing services at the fairgrounds,” it has no support in any regulation. The occupational risk prevention regulations do not in

any way authorize the obtaining and retention of health data from individuals who are not employees of the employer.

Regarding the treatment of employee data, the position defended by the respondent in their allegations, claiming that the treatment of health data of workers is justified by compliance with occupational risk prevention, is also based on several serious errors.

Thus, regarding the obligation of "health surveillance," Article 22 of the LPRL states:

"1. The employer shall guarantee periodic surveillance of the health status of the workers in their service based on the inherent risks of the work.

This surveillance may only be carried out when the worker gives their consent. This voluntary nature shall only be excepted, prior to a report from the workers' representatives, in cases where the performance of the examinations is..."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

64/96

essential for evaluating the effects of working conditions on the health of workers or to verify whether the health status of the worker may pose a danger to themselves, to other workers, or to other individuals related to the company, or when established in a legal provision regarding the protection of specific risks and activities of special danger.

In any case, the option should be to carry out those examinations or tests that cause the least discomfort to the worker and that are proportional to the risk.

2. The measures for monitoring and controlling the health of workers shall be carried out while always respecting the right to privacy and the dignity of the worker and the confidentiality of all information related to their health status.

3. The results of the monitoring referred to in the previous section shall be communicated to the affected workers.

4. Data related to the health monitoring of workers may not be used for discriminatory purposes or to the detriment of the worker. Access to personal medical information shall be limited to medical personnel and health authorities conducting the health monitoring of workers, and may not be provided to the employer or other individuals without the express consent of the worker.

Notwithstanding the above, the employer and individuals or bodies with responsibilities in the area of prevention shall be informed of the conclusions derived from the examinations conducted regarding the worker's fitness for the performance of their job or the need to introduce or improve protective and preventive measures, so that they can properly carry out their functions in preventive matters.

4. In cases where the nature of the risks inherent to the work makes it necessary, the right of workers to periodic monitoring of their health status must be extended beyond the termination of the employment relationship, under the terms determined by regulation.

6. The measures for monitoring and controlling the health of workers shall be carried out by health personnel with technical competence, training, and accredited capacity." (The underlining is ours)

The principles that inform this provision are applicable to the case at hand. According to this provision, the respondent could have easily concluded that the LPRL did not authorize them to obtain the requested information from the employees. From the examination of this article, it is clear that health monitoring by preventive services is, in general, voluntary, except for the specified cases.

Exceptions to voluntariness must be interpreted strictly and limited to those exclusive and particular cases where health monitoring is strictly necessary. Mandatory health examinations must be essential to safeguard the health of workers, which in this case was not the case as there were other preventive measures that involved less interference with the rights of the workers. To which

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

65/96

It should be added that it cannot be established as a general and indiscriminate mandatory preventive measure the health examination of all workers.

Regarding this last issue, it should be noted that it is not evidenced that any company in the categories of suppliers that employed their workers for the assembly of the venue at FIRA did not have some type of prevention service arranged for their employees, aimed at or focused on access to the venue and COVID-19.

In short, the LPRL provided sufficient information to the defendant to know that the treatment they intended to carry out was not in accordance with their allegations.

The LPRL provided sufficient information to the defendant to know that the treatment they intended to carry out was not in accordance with its regulatory provisions.

V. Breach of obligation under Article 9 GDPR

Recital 51 of the GDPR expressly states that, “in addition to the specific requirements” applicable to the processing of “particularly sensitive” data, as set out in Article 9, paragraphs two and three, of that regulation, without prejudice to the measures that, where appropriate, a Member State may adopt on the basis of paragraph four of this article, “the general principles and other rules of this regulation must also apply to such processing, especially regarding the conditions for the lawfulness of the processing,” as derived from Article 6 of the same regulation.

In this case, as already noted, since the health data subject to processing is considered special in nature, it requires a relevant reason to lift its prohibition to enable its processing. Therefore, in addition to the legitimacy of Article 6.1 of the GDPR, there must be coverage in Article 9.2 GDPR that lifts the general prohibition set out in Article 9.1.

Article 9 of the GDPR, “Processing of special categories of personal data,” provides:

“1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply where one of the following applies (only those that may be related to the purpose or activity of processing in this case are cited):

“a) the data subject has given explicit consent to the processing of those personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

66/96

a) The processing is necessary for the fulfillment of obligations and the exercise of specific rights of the data controller or the data subject in the field of labor law and social security and protection, to the extent that it is authorized by Union law, the laws of the Member States, or a collective agreement under the law of the Member States that establishes adequate safeguards for the respect of fundamental rights and the interests of the data subject;

b) The processing is necessary to protect vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent;

[...]

g) The processing is necessary for reasons of essential public interest, based on Union law or the laws of the Member States, which must be proportional to the objective pursued, essentially respect the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;

h) The processing is necessary for the purposes of preventive or occupational medicine, assessment of the worker's capacity, medical diagnosis, provision of health or social care, or management of health and social care systems and services, based on Union law or the laws of the Member States or under a contract with a healthcare professional and without prejudice to the conditions and safeguards

provided for in paragraph 3;

i) The processing is necessary for reasons of public interest in the field of public health, such as protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union law or the laws of the Member States that establish adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy,
[...]

3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when the processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union law or the laws of the Member States or with the rules established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union law or the laws of the Member States or the rules established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data related to health.”

The exceptional cases provided for in Article 9 of the GDPR foresee strict requirements to ultimately enable the implementation of the processing, due to the risks that the impact on fundamental rights and freedoms may pose.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

67/96

involve its processing. In this case, it could affect the fundamental right to health and the physical integrity of workers. These circumstances must be interpreted restrictively, as the processing of special data is prohibited, and as any exception must be interpreted strictly. [Judgment of 4/07/2023, Meta Platforms and others (General conditions of service of a social network), C-252/21, EU:C:2023:537, paragraph 76].

The report of the Legal Office 17/2020, dated 12/03/2020, indicated: “Without prejudice to the above, the data protection regulation itself (Regulation (EU) 2016/679 of the European Parliament and of the Council of 27/04/2016, concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, GDPR)) contains the safeguards and rules necessary to legitimately allow the processing of personal data in situations, such as the present one, where there is a public health emergency of general scope. Therefore, when applying the provisions provided for these cases in the GDPR, in accordance with the applicable sectoral regulations in the field of public health, the considerations related to data protection - within the limits set by the laws - should not be used to hinder or limit the effectiveness of the measures adopted by the authorities, especially health authorities, in the fight against the epidemic, since the data protection regulation itself contains a framework for such cases that balances and weighs the interests and rights at stake for the common good.”

The data protection regulation itself allows that, in emergency situations, for the protection of essential public health and/or vital interests of natural persons, health data necessary to prevent the spread of the disease that has caused the public health emergency may be processed.

Recitals 10, 52 to 54 of the GDPR regarding the processing of special categories of data provide the following:

(10) (...). This Regulation also recognizes a margin of maneuver for Member States to specify their rules, including for the processing of special categories of personal data (“sensitive data”). In this sense, this Regulation does not exclude the right of Member States to determine the circumstances relating to specific processing situations, including the detailed indication of the conditions under which the processing of personal data is lawful.

(52) Exceptions to the prohibition on processing special categories of personal data must also be authorized when established by Union or Member State law and provided that appropriate safeguards

are in place, in order to protect personal data and other fundamental rights, when it is in the public interest, in particular the processing of personal data in the field of labor legislation, social protection legislation, including pensions, and for security, monitoring, and health alert purposes, the prevention or control of communicable diseases, and other serious threats to health. Such an exception is possible for purposes in the field of health, including public health and the management of healthcare services, especially in order to ensure the quality and cost-effectiveness of the procedures used to resolve claims for benefits and services in the regime.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
68/96

of health insurance, or for archival purposes in the public interest, scientific and historical research purposes, or statistical purposes. The processing of such personal data must also be exceptionally authorized when necessary for the formulation, exercise, or defense of claims, whether through judicial, administrative, or extrajudicial procedures.

(53) Special categories of personal data that deserve greater protection should only be processed for health-related purposes when necessary to achieve such purposes for the benefit of individuals and society as a whole, particularly in the context of managing health services and social protection systems, including the processing of such data by health management authorities and central national health authorities for quality control, information management, and overall national and local supervision of the health or social protection system, and ensuring the continuity of healthcare or social protection and cross-border healthcare or for security, monitoring, and health alert purposes, or for archival purposes in the public interest, scientific or historical research purposes, or statistical purposes, based on Union or Member State law that must fulfill a public interest objective, as well as for studies conducted in the public interest in the field of public health. Therefore, this Regulation must establish harmonized conditions for the processing of special categories of personal data related to health, in relation to specific needs, particularly if the processing of such data is carried out, for health-related purposes, by persons subject to a legal obligation of professional secrecy. Union or Member State law must establish specific and appropriate measures to protect the fundamental rights and personal data of individuals. Member States must be empowered to maintain or introduce other conditions, including limitations, regarding the processing of genetic data, biometric data, or data related to health. (...)

(54) The processing of special categories of personal data, without the consent of the data subject, may be necessary for reasons of public interest in the field of public health. Such processing must be subject to appropriate and specific measures to protect the rights and freedoms of individuals. In this context, "public health" must be interpreted as defined in Regulation (EC) No. 1338/2008 of the European Parliament and of the Council (11), that is, all elements related to health, specifically health status, including morbidity and disability, the determinants influencing that health status, the needs for healthcare, the resources allocated to healthcare, the availability of healthcare and universal access to it, as well as the costs and financing of healthcare, and the causes of mortality. (...)

Therefore, from the above, as stated in legal report 0055/2023, "it is concluded that while the GDPR establishes certain assumptions that exempt the prohibition on processing special categories of data, through the law of the Member States, ad hoc regulations can be introduced to adapt the reality of the sectors involved to ensure effective protection of the rights of Union citizens."

To the above, the provisions of Article 9.2 of the LOPDGDD must be added, which states the following:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
69/96

"2. The data processing activities referred to in letters g), h), and i) of Article 9.2 of the Regulation (EU) 2016/679 based on Spanish law must be supported by a norm with the rank of law, which may

establish additional requirements regarding their security and confidentiality.

In particular, such a norm may support the processing of data in the field of health when required by the management of public and private healthcare and social assistance systems and services, or the execution of an insurance contract to which the affected party is a party.”

The requirement that any limitation on the exercise of fundamental rights, as indicated in paragraph 175 of the CJEU ruling of 16/07/2020, case C-311/20, “Schrems 2,” must be established by law, “implies that the legal basis allowing interference with such rights must itself define the scope of the limitation on the exercise of the right in question.” It is therefore the law that must establish the scope of the interference with the fundamental right to Data Protection, as well as the guarantees that protect the rights and freedoms of individuals.

Having said the above, it is appropriate to analyze each of the exceptions to the prohibition on processing health data that, according to the respondent, would apply to the processing under examination.

The respondent considers that the exception provided for in Article 9.2.g) of the GDPR applies.

To activate the exception raised in Article 9.2.g) of the GDPR, the respondent refers to the HEALTH AND SAFETY PLAN FOR MWC 2022, as containing the necessity of processing for reasons of an essential public interest, and to the resolutions issued by health authorities.

The exception provided for in Article 9.2.g) of the GDPR requires that the norm declaring the essential public interest comes from the Member States or Union law, and, moreover:

- it must be proportional to the objective pursued,
- it must essentially respect the right to data protection,
- it must establish adequate and specific measures to protect the interests and fundamental rights of the data subject.

Recital (54) of the GDPR is clear when it states:

“The processing of special categories of personal data, without the consent of the data subject, may be necessary for reasons of public interest in the area of public health. Such processing must be subject to adequate and specific measures to protect the rights and freedoms of natural persons.”

Regarding the Plan referred to by the respondent, it is different from the SECTORAL PLAN FOR FAIRS AND CONGRESSES, and it does not seem to consist of or coincide with the measures implemented by the GSMA “Committed Community” Plan that has been developed and approved by Catalan and Spanish authorities, including health authorities. In any case, no Plan has been provided that the respondent has agreed upon with the authorities, so its content is unknown, but it is known that it would not be a norm with the rank of law.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

70/96

Law or derived from powers attributed by a Law, binding for the recipients thereof.

According to the respondent, the Plan “requires GSMA to collect the personal data subject to the claim, including vaccination certificates or diagnostic tests,” “COVID data,” and was “developed in coordination with health authorities,” which also does not identify its normative rank.

Considering that the restriction of the fundamental right to the protection of personal data cannot be based solely on the generic invocation of an indeterminate “public interest,” and that “It is the legislator who must determine when that good or right justifying the restriction of the right to the protection of personal data occurs and under what circumstances it can be limited, and moreover, it is he who must do so through precise rules that make the imposition of such limitation and its consequences foreseeable to the interested party” (Constitutional Court ruling 292/2000), it must be concluded that, aside from contradictory statements regarding the aforementioned Plan or Plans, since it cites on one hand the “Health and Safety Plan for MWC22” that is announced and developed over time, and the “Committed Community Plan,” it is unknown whether they are the same, as in both it refers to having been developed and approved by health authorities, neither of them would constitute a norm of European or national law with the necessary guarantees. Consequently, the respondent would not be

authorized to process health data through the vaccination data of the employees of the suppliers. In short, it is considered that the circumstances of Article 9.2.g) of the GDPR alleged by the respondent for the processing of health data of the employees involved in the assembly of MWC 22 do not occur.

The other circumstance alleged, although not contained in the DPIA of 22/04/2022, would be that provided for in Article 9.2.i) of the GDPR, which also refers to a public interest "in the field of public health, such as protection against serious cross-border threats to health," it is also added that it must be "on the basis of Union law or the laws of the Member States, which establish adequate and specific measures to protect the rights and freedoms of the data subject."

For this specific case, it is not cited what the legal basis would be that would support the mentioned public interest in the field of public health, and the Plans agreed with public authorities do not cover this requirement. Nor is it included in the resolutions of the health authorities in force during the processing of the data, so there is no norm that expresses a public interest in the field of public health nor that establishes the aforementioned processing of personal data of vaccination, negative PCR, or recovery certificate from the disease.

In the allegations to the proposal, the respondent integrates a new cause of exception to the prohibition with which it intends, through its application, to enable the processing of these health data, citing Article 9.2.h) of the GDPR.

However, it is not recorded that, in this case, the health data will be processed for the purposes of preventing health risks at work, as the companies that contracted with the employees, who were the ones performing assembly work at C/ Jorge Juan, 6, did not intervene.

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

71/96

event venue organized by the respondent. As previously stated, the services contracted by the respondent, through its representative FIRA, were limited to having QUIRONPREVENCIÓN verify the documentation provided by the employees, without providing any medical assistance of any kind and without the workers giving their consent. Therefore, it cannot be classified as either preventive or occupational medicine, as the providers were not the ones who made the decision regarding the communication of their employees' data, nor did the employees give their consent.

Furthermore, it must be taken into account that Article 9.2. h) of the GDPR refers to the "necessary" processing for the purposes of preventive or occupational medicine, assessment of the worker's fitness for work, medical diagnosis, provision of healthcare or social treatment, or management of healthcare and social assistance systems and services, based on Union law or the laws of the Member States, or by virtue of a contract with a healthcare professional and without prejudice to the conditions and guarantees set out in paragraph 3.

The term "necessary" used by the GDPR has, in the opinion of the CJEU, its own independent meaning in community legislation. According to the court, it is an autonomous concept of community law (CJEU judgment of 16/12/2008, case C-524/06, paragraph 52). On the other hand, the European Court of Human Rights (ECHR) has also provided guidelines for interpreting the concept of necessity. In paragraph 27 of its judgment of 25/03/1983, it states that the "adjective necessary is not synonymous with indispensable nor does it have the flexibility of the expressions admissible, ordinary, useful, reasonable, or desirable."

When assessing what is "necessary," an evaluation must be made based on the objective pursued, assessing whether there are less intrusive treatments to achieve the same objective. If there are other realistic and less intrusive alternatives, the processing is not "necessary."

In this case, it must be concluded that the processing was not necessary for the purposes pursued regarding the health prevention of workers, as there were other less intrusive alternatives that did not jeopardize the rights and freedoms of the workers, such as providing workers with appropriate protective equipment according to the level of risk.

For this reason, none of the cited exceptions are deemed sufficient to lift the prohibition on the processing of special health data, and it is considered that Article 9 of the GDPR has been infringed.

VI Breach of obligation under Article 6.1 GDPR

It is appropriate to recall that all processing of personal data must comply, on the one hand, with the principles relating to data processing set out in Article 5 of the GDPR and, on the other, with one of the lawful bases for processing listed in Article 6 of that Regulation (see, in this regard, the judgment of January 16, 2019, *Deutsche Post*, C-496/17, EU:C:2019:26, paragraph 57 and cited case law).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

72/96

Plays a decisive role, the purpose in its collection and processing, as indicated by Article 5.1

b) of the GDPR, which states that “Personal data shall be: collected for specified, explicit, and legitimate purposes” “... and shall not be further processed in a manner that is incompatible with those purposes.”

Article 6 of the GDPR, under the heading “Lawfulness of processing,” specifies in its paragraph 1 the circumstances under which the processing of personal data is considered lawful:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person.
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

The respondent has stated that the bases that support the processing subject to the complaint could be two. On one hand, that of Article 6.1.c) of the GDPR, which is related to the following two recitals: “(41) When this Regulation refers to a legal basis or a legislative measure, this does not necessarily require a legislative act adopted by a parliament, without prejudice to the requirements of conformity with the constitutional order of the Member State in question. However, such legal basis or legislative measure must be clear and precise and its application foreseeable for its recipients, in accordance with the jurisprudence of the Court of Justice of the European Union [...] and the European Court of Human Rights.

(45) When carried out in compliance with a legal obligation applicable to the controller, or if necessary for the performance of a task carried out in the public interest or in the exercise of official authority, processing must have a basis in Union or Member State law.”

The legal obligation according to the respondent is contained in the Plan developed in collaboration with health authorities, a Plan that the respondent has not provided, despite being the one responsible for demonstrating that the processing they carry out has a basis of legitimacy.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

73/96

It also adds that the Public Health Law of the Autonomous Community of Catalonia, 18/2009, “may interfere to protect health,” although it is not demonstrated that, in application of the aforementioned law, binding measures applicable to the specific case were decreed as those that the defendant claims

it was obliged to implement by requiring health data from the employees of the suppliers.

In this regard, it should be noted that the LOPDGDD establishes in its article 8, under the heading: Processing of data by legal obligation, public interest, or exercise of public powers, the following:

“1. The processing of personal data may only be considered based on the fulfillment of a legal obligation imposed on the controller, in the terms provided for in article 6.1.c) of Regulation (EU) 2016/679, when such is provided for by a norm of European Union Law or a norm with the rank of law, which may determine the general conditions of the processing and the types of data subject to it as well as the transfers that may arise as a consequence of the fulfillment of the legal obligation. Such norm may also impose special conditions on the processing, such as the adoption of additional security measures or others established in Chapter IV of Regulation (EU) 2016/679.

2. The processing of personal data may only be considered based on the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred to the controller, in the terms provided for in article 6.1 e) of Regulation (EU) 2016/679, when it derives from a competence attributed by a norm with the rank of law.”

Therefore, for the application of the legitimizing basis provided in art. 6.1.c) of the GDPR, it will be necessary for a norm with the rank of Law to impose a specific obligation on the controller that must be fulfilled and that cannot be evaded.

From the above, it follows that the legal basis indicated by the defendant does not meet the requirements demanded for the application of article 6.1.c) and must be rejected, for:

- A Plan or an agreement between parties, even if one of them is with a public entity, is not a Law nor does it derive from it as it is not an instrument with binding profile. It remains a conventional agreement between parties that finds no accommodation in administrative law to bind the affected party. The obligation as such must be expressly contained in a norm with the rank of Law, which must meet all relevant conditions for the obligation to be valid and binding, including compliance with data legislation regarding the requirements of necessity, proportionality, and limitation of purpose.
- The relationship that the defendant has with the employees is not a direct relationship but mediated by the employer, the supplier of the defendant, so that, in any case, the fulfillment of the legally imposed obligations on the employer would fall to the supplier and not to the defendant, as there is no direct employee-defendant link.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

74/96

- The data controller must not have the option to choose whether or not to comply with this obligation; any potential agreements between the parties or unilateral commitments would not be covered by this basis of legitimacy.

Furthermore, Article 6.3 of the GDPR specifies in this case that the processing must be based on Union law or the law of the Member States applicable to the data controller, and the purpose of the processing must be determined in that legal basis. The law of the Union or the Member States must serve a public interest objective and be proportionate to the legitimate aim pursued. The plan or agreement mentioned by the defendant, which has not been provided, would need to be part of the law, not an agreement or a convention that would only bind the parties in their case.

Regarding the resolutions of the administrative authorities, it should be noted that the MWC22 took place for attendees from 28/02/2022 to 03/03/2022, and that the health data of employees were likely collected between 23/01/2022 and 08/03/2022, although the contract signed with QUIRONPREVENCIÓN SLU is dated 21/02/2022.

As stated in the tenth proven fact, the resolutions of the health authority applicable between 23/01/2022 and 08/03/2022 were as follows:

RESOLUTION SLT/99/2022, dated 26/01, which establishes measures in public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia.

In this resolution, the restrictive measures on fundamental rights that were still in force are lifted, namely: "the limitation of meetings and social gatherings to a maximum of ten people, the limitation on

the capacity of religious activities, and the requirement of a COVID certificate for access to certain non-essential activities in closed spaces (restaurants, physical and/or sports activity rooms, gyms, and permitted musical recreational activities: concert halls, café theaters, concert cafés, and musical restaurants)."

In section 2.1 "Individual and collective protection measures," it is established "(...) Both in closed spaces and outdoors, except for groups of cohabiting persons, the interpersonal physical safety distance is set at 1.5 m, in general, with the equivalent of a safety space of 2.5 m² per person, unless more restrictive values are in force for the type of activity. When the development of the activity does not allow for maintaining the interpersonal physical safety distance, appropriate hygiene and organizational measures must be adopted to prevent the risks of contagion.

In outdoor spaces where it is not possible to maintain the interpersonal physical safety distance due to the crowding of people, the use of masks is mandatory under the terms established in section 2.3 of this Resolution."

Regarding the "Prevention and hygiene measures in workplaces," in point 3.4, section 2, it is determined: "Without prejudice to compliance with occupational risk prevention regulations and other applicable labor regulations, the owners of workplaces, both public and private, must adopt, in the workplaces, among others, the following measures:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

75/96

a) Adopt organizational measures in the working conditions to ensure the maintenance of the minimum interpersonal safety distance. And, when this is not possible, appropriate protective equipment must be provided to workers according to the level of risk."

(...)

RESOLUTION SLT/177/2022, of 2/02, establishing measures in public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia,

In relation to the "Individual and collective protection measures," it states in point 2.1

"1. (...) Both in enclosed spaces and outdoors, except for groups of cohabiting individuals, the safety distance is set at 1.5 meters, in general, with the equivalent of a safety space of 2.5 square meters per person, unless more restrictive values are in effect for the type of activity. When the development of the activity does not allow for the maintenance of the safety distance, appropriate hygiene and organizational measures must be adopted to prevent the risks of contagion.

2. The duty of protection established in heading 1 is also enforceable against the holders of any economic, business activity, or public use establishment that is open to the public, in accordance with the organizational, hygiene, and prevention standards established in this Resolution and, where applicable, the corresponding sectoral plan or organizational protocol. (...)"

RESOLUTION SLT/254/2022, of 9/02, modifying Resolution SLT/177/2022, of 2/02, which establishes measures in public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia

It also includes "2.1 Individual and collective protection measures

1. Citizens must adopt the necessary measures to avoid the generation of risks of spreading the infection by SARS-CoV-2, as well as exposure to these risks, and must adopt individual and collective protection measures based on: frequent hand hygiene; hygiene of respiratory symptoms (avoiding coughing directly into the air, covering the mouth with the inner part of the forearm in these cases, and avoiding touching the face, nose, and eyes); safety distance; the use of masks under the terms established in section 2.3 of this Resolution; preference for outdoor spaces for carrying out activities; proper ventilation of enclosed spaces, and cleaning and disinfection of surfaces.

Both in enclosed spaces and outdoors, except for groups of cohabiting individuals, the safety distance is set at 1.5 meters, in general, with the equivalent of a safety space of 2.5 square meters per person, unless more restrictive values are in effect for the type of activity. When the development of the activity does not allow for the maintenance of the safety distance, appropriate measures must be adopted."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
76/96

to adopt appropriate hygiene and organizational measures to prevent the risks of contagion."
This resolution does not modify the specific prevention and hygiene measures in workplaces established in RESOLUTION SLT/177/2022, dated 02/02.

RESOLUTION SLT/342/2022, dated 16/02, which establishes measures in public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia
It also includes in point 2.1 "Individual and collective protection measures

1. Citizens must adopt the necessary measures to avoid the generation of risks of spreading the infection by SARS-CoV-2, as well as their own exposure to these risks, and must adopt individual and collective protection measures based on: frequent hand hygiene; hygiene of respiratory symptoms (avoiding coughing directly into the air, covering the mouth with the inner side of the forearm in these cases, and avoiding touching the face, nose, and eyes); maintaining a safety distance; the use of masks under the terms established in section 2.3 of this Resolution; preference for outdoor spaces for carrying out activities; proper ventilation of closed spaces; and cleaning and disinfection of surfaces. Both in closed spaces and outdoors, except for groups of cohabiting individuals, the safety distance is generally set at 1.5 meters, equivalent to a safety space of 2.5 square meters per person, unless more restrictive values are in effect for the type of activity. When the development of the activity does not allow maintaining the safety distance, appropriate hygiene and organizational measures must be adopted to prevent the risks of contagion."

RESOLUTION SLT/541/2022, dated 02/03, which establishes measures in public health for the containment of the epidemic outbreak of the COVID-19 pandemic in the territory of Catalonia
It establishes in its point 2.1 "Individual and collective protection measures

1. Citizens must adopt the necessary measures to avoid the generation of risks of spreading the infection by SARS-CoV-2, as well as their own exposure to these risks, and must adopt individual and collective protection measures based on: frequent hand hygiene; hygiene of respiratory symptoms (avoiding coughing directly into the air, covering the mouth with the inner side of the forearm in these cases, and avoiding touching the face, nose, and eyes); maintaining a safety distance; the use of masks under the terms established in section 2.3 of this Resolution; preference for outdoor spaces for carrying out activities; proper ventilation of closed spaces; and cleaning and disinfection of surfaces. Both in closed spaces and outdoors, except for groups of cohabiting individuals, the safety distance is generally set at 1.5 meters, equivalent to a safety space of 2.5 square meters per person, unless more restrictive values are in effect for the type of activity. When the development of the activity does not allow maintaining the safety distance, appropriate hygiene and organizational measures must be adopted to prevent the risks of contagion."

C/ Jorge Juan, 6
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28001 – Madrid
sedeagpd.gob.es
77/96

The development of the activity does not allow for maintaining the safety distance; appropriate hygiene and organizational measures must be adopted to prevent the risks of contagion.

(...)

Therefore, taking into account what has just been indicated, the legal basis for processing the health data of workers cannot be that provided for in Article 6.1(c) of the GDPR, as there was no regulation imposing an obligation on the defendant to process such health data. Moreover, the provisions related to occupational risk prevention already included the appropriate measure that should be adopted: to provide workers with the protective equipment suitable for the level of risk.

On the other hand, the defendant also considers applicable the basis of Article 6.1(d) "necessary to protect vital interests of the data subject or of another natural person." This basis covers situations where the processing is necessary to protect an essential interest for the life of the data subject or that of another natural person, which could include attendees at the event, including workers.

Recital (46) states: "The processing of personal data should also be considered lawful when it is necessary to protect an essential interest for the life of the data subject or that of another natural person. In principle, personal data should only be processed on the basis of the vital interest of another natural person when the processing cannot be manifestly based on a different legal basis. Certain types of processing may respond to both important public interest reasons and the vital interests of the data subject, such as when the processing is necessary for humanitarian purposes, including the control of epidemics and their spread, or in situations of humanitarian emergency, especially in the case of natural or man-made disasters."

The concept of "vital interest" seems to limit the application of this legal basis to life or death issues, or at a minimum, to threats that pose a risk of injury or other harm to the health of the data subject, as indicated in section III.2.4 of Opinion 6/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, whose Article 7(d) was equivalent to Article 6.1(d) of the GDPR: "the objective of this legal basis is to 'protect an essential interest for the life of the data subject.'

However, the Directive does not precisely specify whether the threat must be immediate. This raises questions regarding the scope of data collection, for example, whether it is a preventive measure or large-scale, such as the collection of data from passengers of an airline when there is a risk of an epidemiological disease or a security incident has been detected."

On the other hand, it should be noted that Article 9.2(c) of the GDPR applies to lift the prohibition on processing special data, such as health data, when "the processing is necessary to protect vital interests of the data subject or of another natural person, in the event that the data subject is not physically or legally capable of giving consent." Therefore, Article 6.1(d) of the GDPR does not...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

78/96

is sufficient for the processing of health data, and it is necessary that this exception from Article 9.2.c) of the GDPR also applies.

Although Article 6.1.d) of the GDPR does not limit the use of the legal basis to situations where consent cannot be given, as specified in Article 9.2.c), it follows from Recital 46 of the GDPR that in situations where it is possible to obtain valid consent, it must be requested. Therefore, the application of this provision would be limited to cases where the processing cannot be manifestly based on a different legal basis, and it cannot be used to legitimize any mass collection or processing of personal data.

The CJEU ruling of 4/07/2023, case C-252/21, states on this basis:

"135 Secondly, Article 6(1), first paragraph, letter d), of the GDPR establishes that the processing of personal data shall be lawful when it is necessary to protect vital interests of the data subject or of another natural person.

136 As is evident from Recital 46 of the aforementioned Regulation, this provision contemplates the particular situation in which the processing of personal data is necessary to protect an essential interest for the life of the data subject or that of another natural person. In this regard, that recital specifically cites humanitarian purposes, such as the control of epidemics and their spread, or in situations of humanitarian emergency, especially in the case of natural or man-made disasters.

137 From these examples and from the strict interpretation that must be applied to Article 6(1), first paragraph, letter d), of the GDPR, it follows that, in view of the nature of the services provided by an online social network operator, such an operator, whose activity is essentially economic and commercial in nature, cannot invoke the protection of an essential interest for the life of its users or another person to justify, in absolute terms and in a purely abstract and preventive manner, the lawfulness of data processing such as that contested in the main proceedings.

(...)

139 Article 6(1), first paragraph, letters d) and e), of the GDPR must be interpreted in the sense that such processing of personal data cannot, in principle and without prejudice to the verification that must be carried out by the referring court, be considered necessary to protect vital interests of the data subject or of another natural person, according to letter d), or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller, in accordance with letter e).

In this context, the Court considers that this basis of legitimacy must be applied in a strict sense and only when the processing is necessary to protect vital interests. The requirement of necessity is analyzed in Recital 39 of the GDPR, and it follows from it that this is fulfilled when the general interest objective pursued cannot be reasonably achieved with equal effectiveness by other means that are less intrusive regarding the fundamental rights of the data subjects, particularly concerning the...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

79/96

Rights to respect for private life and protection of personal data.

On the other hand, considering that there is a widespread processing of employee data that, although it does not belong to the defendant but to its suppliers, Article 14 of Law 31/1995 of 8/11 on the Prevention of Occupational Risks (LPRL) may apply, which establishes an obligation for the employer to protect workers against occupational risks.

The LPRL provides for coordination by the employer who owns the workplace when workers from two or more companies carry out activities in the same workplace. However, in the DPIA of 22/04/2022, no aspect of the processing based on the prevention of occupational risks is evaluated in terms of its necessity and proportionality.

As in any sector of activity, on the dates when MWC 2022 was to be held, there were vital interests of groups to protect, or of third parties, but as indicated by the CJEU in the aforementioned ruling, it is not possible to invoke the protection of an essential interest for life to justify, in absolute terms and in a purely abstract and preventive manner, the lawfulness of data processing without demonstrating the necessity of that processing. Furthermore, in the situation of health emergency, it was the health authorities that established the necessity of the treatments, taking into account the variation of circumstances over time. At each moment, depending on the health circumstances, the health authorities determined the applicable measures and the sectors of activity to which they applied, without being applicable to any sector or event. It was the health authorities that implemented the necessary measures to prevent the spread of the pandemic without establishing the necessity of obtaining and retaining COVID documentation during the processing of the disputed data. Moreover, on the dates when the necessity to check COVID documentation was established, it was sufficient to display the documents related to health data without establishing the necessity of their retention.

Considering that all processing involves an interference with the rights of their holders, the employees, the defendant does not demonstrate the essential necessity to protect the vital interest of the obligation to register the vaccination certificate or PCR tests. Regarding this alternative that required the employee to pay for the PCR tests, as they are only valid for 72 hours, the defendant has not provided any assessment of its necessity and the risks of the measure in relation to the rights and freedoms of the interested parties.

Finally, it should be clarified that, in general, the necessity judgment is justified in the Impact Assessment. However, in this case, there is no analysis of the necessity, proportionality, and suitability of this measure, as nothing is indicated in this regard, failing to minimally demonstrate that the measure is necessary to achieve the intended purpose, as such an assessment has not been carried out. Necessity must be interpreted in the sense that the processing is indispensable to protect the vital interest of the persons attending the event or of the workers because there is no other less restrictive measure of rights. Furthermore, they must justify that the processing operations carried out – the collection, registration, and retention of certificates – are indispensable, rather than merely their

exhibition.

The processing of personal data in these situations of health emergency, as mentioned, must continue to be carried out in accordance with the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

80/96

regulations on personal data protection (GDPR and LOPDGDD). The specific regulation of health emergencies constitutes special legislation that arises from the need, in certain circumstances, to adopt specific measures to preserve public health and to protect the rights to life, physical integrity, and health of individuals, guaranteed by Articles 15 and 43 of the Constitution, and may proportionately justify certain limitations on the exercise of fundamental rights. In this case, the regulation was materialized through public health norms that provided safeguards for the essential interests affected, requiring those responsible to act in accordance with what was indicated therein. Alternatively, the respondent has added in its allegations to the proposal a new legal basis for the processing of data of employees of the suppliers who carry out the installation of the facilities of the venue where the congress is held, citing Article 6.1.c) of the GDPR, "the processing is necessary for compliance with a legal obligation to which the data controller is subject," now considering "the compliance with legal obligations in the field of occupational risk prevention," estimating that health surveillance was mandatory under Article 22 of the LPRL, and that it has been carried out by QUIRONPREVENCIÓN.

However, as noted, this activity cannot be carried out without the consent of the workers. It is also estimated that this legal obligation would correspond, in this case, to the employers, suppliers, whose employees have as a counterbalance the right against the obligation of those. But in no case can it entail requiring vaccination or the provision of a certificate of recovery from the disease or PCR indiscriminately from all workers, nor does it justify requiring the data of employees of suppliers with whom the respondent has no relationship whatsoever.

This implies that the legitimizing bases presented by the respondent for the processing of data of employees of the suppliers during the event and presumably in advance for the preparation of the installation assembly are not substantiated in this case, therefore it is appropriate to acknowledge the infringement of Article 6.1 of the GDPR.

VII Unfulfilled obligation of Article 14 of the GDPR

In this case, the data of the employees of the respondent's suppliers, dedicated to the assembly work of the facilities for the MWC 2022 event, are being processed. The employers (suppliers of the respondent GSMA) provide the data to GSMA in an application that it, as the organizer of MWC 22, has for the purpose of secure access control, without COVID, to its facilities where the Congress is held annually.

The respondent is responsible for the processing of the data that is carried out of the employees of the suppliers, fulfilling the requirements for determining the purposes and means of processing the data of the employees of the suppliers, establishing the why of the processing and how it will be carried out, complying with the requirements of the GDPR to be qualified as such a responsible party.

After receiving the data of the employees entered by the suppliers, the employees receive an initial email from the respondent requesting them to send

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

81/96

the COVID data to the deputy data processor QP, with which it connects for sending her the vaccination certificates or tests.

The first statement made in response to the transfer indicated:

“In relation to the information provided about the processing of these data, and concerning the data processing subject to this complaint, it is provided directly by the supplier/employer as GSMA does not have direct contact with the workers. The contract between GSMA and the supplier requires the supplier to comply with applicable data protection laws, including compliance with the transparency and legality requirements for the purpose of transferring the data of its workers to GSMA or its data processors, including the provision of GSMA's privacy policy.”

Therefore, it is the data controller, the defendant, to whom the GDPR and the LOPDGDD impose a series of obligations, among which is to process personal data in a fair, lawful, and transparent manner (art. 5.1.a of the GDPR).

Transparency is intrinsically linked to fairness and the principle of accountability according to the GDPR.

From Article 5.2 of the GDPR, it is also inferred that the data controller must always be able to demonstrate that personal data is processed transparently in relation to the data subject. In accordance with this point, the principle of accountability requires transparency of processing operations so that data controllers can demonstrate compliance with their obligations under the GDPR. Furthermore, in the statement made in its response to the transfer, the defendant has reflected in its DPIA that the information to employees was provided by the suppliers via a “privacy notice” that appeared on the defendant's website, provided to them by their employer on behalf of GSMA, under the wording in the DPIA “In accordance with the terms and conditions of the contractor registration between GSMA and the suppliers, they contractually commit to comply with the transparency obligations before sharing employee data with GSMA, including the provision of GSMA's privacy notice to all its employees.”

Thus, according to the initial statements of the defendant in response to the transfer, in the contracts signed with the suppliers, the obligation to inform about the data processing is transferred to the suppliers, associating them with the “privacy policy of the defendant's website.”

Article 14 of the GDPR states:

“1. When personal data has not been obtained from the data subject, the data controller shall provide the following information:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing;
- d) the categories of personal data concerned;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a recipient in a third country or an international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject with the following information necessary to ensure fair and transparent data processing with respect to the data subject:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- c) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of their processing, and to object to the processing, as well as the right to data portability;
- d) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- e) the right to lodge a complaint with a supervisory authority;

- f) the source from which the personal data originate and, where applicable, whether it comes from publicly accessible sources;
- g) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. The data controller shall provide the information referred to in paragraphs 1 and 2:

- a) within a reasonable period, once the personal data have been obtained, and no later than...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

83/96

to be provided within one month, taking into account the specific circumstances in which the data is processed;

- b) if the personal data is to be used for communication with the data subject, at the latest at the time of the first communication to that data subject, or
- c) if it is intended to communicate them to another recipient, at the latest at the time when the personal data is communicated for the first time.

4. When the data controller intends to further process the personal data for a purpose other than that for which it was obtained, they shall provide the data subject, prior to such further processing, information about that other purpose and any other pertinent information indicated in paragraph 2.

5. The provisions of paragraphs 1 to 4 shall not apply when and to the extent that:

- a) the data subject already has the information;
- b) the communication of such information proves impossible or involves a disproportionate effort, in particular for processing for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, subject to the conditions and safeguards referred to in Article 89, paragraph 1, or to the extent that the obligation mentioned in paragraph 1 of this article may prevent or seriously hinder the achievement of the objectives of such processing. In such cases, the controller shall take appropriate measures to protect the rights, freedoms, and legitimate interests of the data subject, including making the information public;
- c) the obtaining or communication is expressly laid down by Union or Member State law applicable to the controller and which provides for appropriate measures to protect the legitimate interests of the data subject, or
- d) when the personal data must continue to be kept confidential based on a professional secrecy obligation regulated by Union or Member State law, including a legal secrecy obligation."

The obligation to inform is enforceable against the data controller, in this case, initially the providers are the ones who enter the data of their employees into the application of the respondent, it follows that the data collected by the respondent is not provided by the data subjects, that is, by the employees themselves, but by the GSMA provider, the employer of the affected individuals (data such as names, surnames, email, etc.). Subsequently, the COVID health data required for the pass is entered into the application by the employees themselves, through contact via email and following the instructions of the respondent.

The legal obligation established by the GDPR and the LOPDGDD that the data controller must comply with implies its enforceability against that controller, in this case, the respondent, without the mere particular agreement of wills, which is not documented but merely expressed, being able to have the effect that the respondent intends, which would render ineffective the high degree of protection and guarantees that

84/96

offered by the GDPR.

Responsibility will always be required from the party that the regulation identifies as obligated, and in the case of the obligation to inform, it falls on the data controller, so it must be understood, being a functional concept, as the one who decides on the purposes and means of processing. In this case, the defendant decided to carry out the processing and determined the means of processing; therefore,

they are responsible for complying with the obligation to inform. The ultimate goal of attributing the obligation to the data controller is to ensure compliance and effective and comprehensive protection of the right to data protection.

Recital 39 of the GDPR states in this regard: "All processing of personal data must be lawful and fair. For natural persons, it must be entirely clear that personal data concerning them is being collected, used, consulted, or otherwise processed, as well as the extent to which such data is or will be processed."

It is not possible to transfer this legal responsibility established by the GDPR, regardless of the agreements that the parties may reach, which are unrelated to this procedure.

This obligation is also not fulfilled by the dissemination of press releases or knowledge in media outlets, given that it is an individual right and must occur when collecting data from the affected individual, as a guarantee and safeguard of the rights of the affected parties.

Against the informational content of the privacy policy that the defendant considers sufficient, it must be pointed out that to understand the fulfillment of the obligation to provide information to the employees who are the data subjects whose data has been collected—not only health data but also basic data such as name, surname, and email—it must be demonstrated what the content of the information is and when the information is provided.

This obligation cannot be replaced by merely having the privacy policy available on the website, as the information must be provided directly to the person from whom their data is requested, whether the data is collected directly from the data subject by the controller or not. The privacy policy could be a means to fulfill the obligation to inform, provided that the controller directly communicates the basic information to the data subject and the location of the complete information.

On the other hand, the defendant's assertion that after the initiation agreement, the AEPD assumes that information has been provided lacks basis, as Article 14 of the GDPR is fully reproduced in the initiation agreement, indicating that the information has not been provided.

The assertion that the application informed about the privacy policy cannot succeed either, as from the screenshot accompanying: "Contractor accreditation-system login," it is inferred that the responsibility for loading personal data lies with the provider, who is the only one interacting with GSMA, meaning that in any case, they would be informed and not the employees who are the data subjects. The link that appears on that screen under "legal" does not directly lead to the privacy policy but to a screen with various options, of which that is only one. It should be noted.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
85/96

that the first and only contact of the respondent with the claimant (with the employees) as she herself explained, occurred as a result of the sending of an email from GSMA to the employee in which she indicated a link to upload vaccination data. Additionally, it is noted that, as the privacy policy encompasses various subjects participating in the event, it has certain shortcomings; thus, in the section "Data Retention," the conservation of the data collected from the employees of the suppliers is not detailed, urging to contact for more information. The legitimizing basis corresponding specifically to the processing of data of each category of attendee/employee is also not provided, being stated in a general and abstract manner without identifying the groups to which it refers. There is no mention of the right to lodge a complaint with a supervisory authority, nor the source from which the data originates, nor the contact details of the Data Protection Officer. Finally, in the section "information provided voluntarily," it states "COVID-19 tests: As indicated in our Community Committed Plan, you will be required to undergo COVID-19 testing at regular intervals during the event. The information about your test results will be processed solely for the purpose of access control."

In summary, the respondent did not provide the interested parties with the information required by Article 14 of the GDPR, and the information in its privacy policy is incomplete, which does not mean that the present procedure is directed against the respondent because its privacy policy is incomplete, but rather because no information was provided to the interested parties.

Therefore, this allegation cannot be upheld, as the duty to inform by the respondent is deemed unfulfilled. The information that the data controller must provide must be given regardless of whether the controller has access to the data regarding which it has ultimately decided how it will be processed, establishing purposes and means for this. Although it is also noted that the respondent is aware of the result because it is communicated to QP when informed of the decision of suitability or not, which is incorporated in the title of the vaccine provided by each employee, and is stored and preserved to allow access to the facility each day, in this case to the place of work.

The fact is that, once the data is sent by the suppliers, the respondent has it at its disposal and could have informed about the collection and processing in the first contact it maintains with them; however, there is no record that it did so.

As clarified in the Guidelines on Transparency under Regulation (EU) 2016/679 Adopted on 29/11/2017 Last reviewed and adopted on 11/04/2018: "27. Regarding the timing of providing this information, doing so in a timely manner is a fundamental aspect of the obligation of transparency and the obligation of fair data processing. When Article 13 is applicable, paragraph 1 of that article provides that the information must be provided 'at the time when [the personal data] are obtained.' In the case of personal data obtained indirectly under Article 14, the deadlines for providing the necessary information to the data subject are established in Article 14, paragraph 3, letters a) to c), namely:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

86/96

- The general requirement is that the information must be provided within a "reasonable time" once the personal data has been obtained, and no later than one month, "taking into account the specific circumstances in which such data is processed" [Article 14, paragraph 3, letter a)];
- The general maximum period of one month provided for in Article 14, paragraph 3, letter a), may be reduced in accordance with Article 14, paragraph 3, letter b)³¹, which contemplates situations where the data is used to communicate with the data subject. In such cases, the information must be provided no later than at the time of the first communication with the data subject. If the first communication occurs before the maximum period of one month after the personal data has been obtained, the information must be provided "at the latest" at the time of the first communication with the data subject, provided that no month has elapsed since the moment the data was obtained. If the first communication with a data subject occurs after one month has elapsed since the personal data was obtained, Article 14, paragraph 3, letter a), continues to apply, and the information referred to in Article 14 must be provided to the data subject no later than within one month from its obtaining;
- The general maximum period of one month provided for in Article 14, paragraph 3, letter a), may also be reduced in accordance with Article 14, paragraph 3, letter c), which contemplates situations where the data is communicated to another recipient (whether a third party or not). In such cases, the information must be provided no later than at the time of the first communication. In this situation, if the communication occurs before the maximum period of one month, the information must be provided "at the latest" at the time of such communication, provided that no month has elapsed since the moment the data was obtained. Similarly to the position regarding Article 14, paragraph 3, letter b), if any communication of personal data occurs after one month has elapsed since the obtaining of the personal data, Article 14, paragraph 3, letter a), again applies, and the information referred to in Article 14 must be provided to the data subject no later than within one month from its obtaining."

However, in this case, it is not recorded that the respondent informed, therefore, the accusation of having incurred in a violation of the aforementioned article is maintained.

The respondent claims that initially these facts had not been the subject of a complaint and that no procedure can be initiated for this reason.

However, in the phase of transferring the complaint, the respondent emphasizes in its response that it is noted as a failure to comply with its obligation to inform about the data it collects through employers (providers of the respondent). This obligation affects a right of the data subjects and the complainant directly related to the collection of such sensitive data as health data. The AEPD, in light of such

evident non-compliance, which is also related to the design of the processing, cannot omit the requirement of accountability for this evident illegality, simply because it has not been specifically expressed in the complaint.

The respondent had not proven that it had complied with the obligation to inform the affected parties, which is why the sanctioning procedure was also initiated for this fact.

VIII Classification and qualification of the violations

It is considered that the facts presented could violate the provisions of Articles: 14, 9.2, and 6.1 of the GDPR, with the scope expressed in the previous Legal Grounds, which implies the commission of the violations classified in Article 83, paragraphs 5.a) and 5.b) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides that:

"5. Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22;

In this regard, the LOPDGDD, in its Article 71 establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute violations."

For the purposes of the limitation period, Article 72 of the LOPDGDD indicates:

"Very serious violations.

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a limitation period of three years for violations that constitute a substantial breach of the articles mentioned therein and, in particular, the following:

[...]

"b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679."

[...]

"e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law."

[...]

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

88/96

"h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law."

IX Determination of the sanction

The fines imposed must be, in each case, individual, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;

- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the affected parties;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,

C/ Jorge Juan, 6
 www.aepd.es
 28001 – Madrid
 sedeagpd.gob.es

89/96

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
 In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The link between the infringer's activity and the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

Letter e) of Article 83.2 referred to as “any previous infringement committed by the controller or processor;” is applicable to the party concerned, as a sanction classified as serious was recently imposed on them on 24/02/2023, in procedure EXP202100603, PS/00553/2021, for an infringement of Article 35 of the GDPR, for not having a valid Data Protection Impact Assessment for the processing of biometric data as part of the access means provided for the MWC venue in the previous year 2021. Therefore, it is highly relevant to all the infringements currently being assessed, as these present infringements correspond to the event of the following year and are also related in one way or another to the instruments implemented to allow access to the event, including measures to curb the spread of the COVID-19 disease. Furthermore, in both cases referred to special category data, in 2021: biometric data, now, health data. The provision, directly applicable, does not distinguish that the infringement must be of the same type or nature, and in this case, it clearly relates to special categories of data.

C/ Jorge Juan, 6

The judgment of the CJEU of December 5, 2023, case C-807/21, states in paragraph 45: “The material requirements that a supervisory authority must respect when imposing such a fine are established, in paragraphs 1 to 6 of Article 83 of the GDPR, precisely and without leaving any margin of appreciation to the Member States.”

Article 83.2.e) of the GDPR considers that when deciding the amount of the administrative fine, “Any previous infringement committed by the controller” must be taken into account, which would apply as an aggravating factor to all the infringements attributed, given the connection of the behaviors attributed as a unit of action in the processing of data of the employees of suppliers.

The defendant argued that for all the infringements, the purpose guiding them to safeguard the health of workers should be considered as a mitigating factor. However, alongside this concern, the variable of the data protection of the affected individuals as a personal right and their self-determination to be managed in accordance with the regulations and with the guarantees and safeguards established by the GDPR and the LOPDGDD must also be considered, which are by no means incompatible.

Thus, having made the previous assessment, the circumstances that must be taken into account for the imposition of a fine for the infringement of Article 14 of the GDPR are analyzed. For the purpose of determining the amount of the sanction to be imposed in the present case, it is considered appropriate to graduate the sanction in accordance with the following circumstances included in Article 83.2 of the GDPR:

- From Article 83.2.a) “the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected individuals and the level of damage and harm they have suffered.”

The processing carried out involves all employees of the suppliers, being unaware of all elements of the processing of their data, which constitutes an aggravation of the conduct that prevents them from exercising control over their personal data.

- From Article 83.2.b) “the intentionality or negligence in the infringement.” In fulfilling its legal obligations, the defendant intends to transfer the claim to the supplier, the employer of the workers, when it is the defendant who must legally respond without being able to delegate this responsibility. Furthermore, it has the means to inform, therefore there is no reasonable diligence to fulfill the legal obligation, which reveals a lack of diligence in complying with this obligation.

The judgment of the National Court, of October 17, 2007, appeal 63/2006, indicates that the Supreme Court “has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the defendant involves constant and abundant handling of personal data in the organization of events with massive attendance, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard.”

The respondent, regarding this aggravating factor, argued that it should be considered a mitigating factor due to the objective pursued and the collaboration with health authorities to comply with public health regulations and applicable restrictions, as well as the diligence shown by not having access to the data.

This argument must be rejected, partly already addressed in its general allegation, and also because it does not relate to the aggravating factor being analyzed in connection with the circumstances surrounding the respondent's conduct regarding access to the data, as informing does not depend on access to the data.

These circumstances are considered to aggravate the infringement, and a sanction of 100,000 euros should be imposed.

Regarding the infringement of Article 9.2, it is considered that in addition to the one already indicated regarding the application of the cause contained in Article 83.2.e) of the GDPR, the following circumstance applies:

-- Article 83.2.a) "the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm suffered."

The collection and processing of data occurred at a private event, a processing that is not merely incidental or accessory, which involves the registration of health data in an application and its storage during the duration of the event, with a foreseeable start date of 01/21/2022, until 03/08/2022, without employees having the option to refrain from providing health data, in a situation of imbalance between the parties, affecting the freedom of the interested parties who cannot refrain from providing such data if they wish to attend work, all of which are aggravating elements of the infringement, affecting several thousand employees. Circumstances that constitute this aggravating factor of the infringement.

- Article 83.2.k) GDPR in relation to Article 76.2.b) LOPDGDD: The link between the business activity of the respondent and the processing of personal data.

The respondent, in the development of its event organizing activity, which is inherent to it and related to the development of technologies, some of which are emerging, needs to regularly process personal data and has been doing so in successive editions in an innovative field regarding technologies, as mentioned. Conversely, this fact impacts the diligence required of it in complying with the principles governing the processing of personal data and the quality and effectiveness of the technical and organizational measures that must be implemented to ensure respect for this fundamental right, in this case, of the employees. Aggravating elements of the infringement.

The respondent argued for this aggravating factor that its business is actually the promotion of mobile telephony carried out in collaboration with FIRA and that its commercial activity does not have a special relationship with the processing of health data.

In this regard, its argument cannot be upheld, given that the respondent processes the data of employees at each event call either directly or through data processors.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

92/96

and decides, in this case, to implement, partly due to the pandemic, contactless technological means, which require providing personal data to access work. The high number of attendees and employees needed for the setup of the facilities and their duration represent a significant data processing consideration for each annual congress held.

The balance of the circumstances considered, regarding the infringement committed by violating the provisions of Article 9.2 of the GDPR, leads to the imposition of a fine of 300,000 euros.

Regarding the infringement of Article 6.1 of the GDPR, also considering the concurrence already indicated of the cause contained in Article 83.2.e) of the GDPR, the following circumstances must also be taken into account for the grading of the sanction:

- Article 83.2.a) "the nature, seriousness, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered."

The processing primarily affects a group of employees of suppliers who do not have expectations that their data will be processed by a third party, as they do not have a direct relationship with that entity.

The duration of this processing is longer than that of the attendees, as they must attend their work before, during, and after the event. It encompasses all employees of the suppliers who either undergo vaccination or provide a PCR test, which is not noted to be covered other than by the employee themselves, and which, for its validity, must be repeated during the period in which they must access the venue to perform their work, or provide a certificate of recovery from the illness, elements that

influence the aggravation of the sanction.

The sanction is set in this case at 200,000 euros.

Finally, the defendant argued that, for all the infringements, the element of culpability in their conduct does not concur, due to their intention to ensure the health of the workers, considering the context and changing measures, and that there was no negative impact on the pandemic situation, acting diligently by having a person in charge, acting from the precautionary principle of Article 3 of Law 33/2011 of 4/10 on public health.

The Supreme Court, in line with that of the Constitutional Court, has established that the sanctioning power of the Administration, as a manifestation of the State's *ius puniendi*, is governed by the principles of criminal law, with the basic structural principle being culpability, incompatible with a regime of objective liability, without fault.

The Supreme Court (Judgments of 16 and 22/04/1991) considers that from the element of culpability it follows "that the action or omission, qualified as an administratively sanctionable infringement, must, in any case, be attributable to its author, by intent or negligence, imprudence, or inexcusable ignorance."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

93/96

This requirement of culpability in the realm of administrative offenses has been reiterated *ad nauseam* by the jurisprudence of the Supreme Court. Thus, the Supreme Court rulings of 12 (féc. 388/1994) and 19/05/1998, Section Six, state that in the sanctioning sphere "any attempt to construct objective liability is prohibited" and that "in the realm of administrative liability, it is not enough for the conduct to be unlawful and typical; it is also necessary for it to be culpable, that is, a consequence of an action or omission attributable to its author due to malice or negligence, imprudence, or inexcusable ignorance (...) that is to say, as a requirement derived from Article 25.1 of the Constitution, no one can be condemned or sanctioned except for acts that can be attributed to them by way of intent or fault (principle of culpability)."

In light of the aforementioned jurisprudence, it is appropriate to conclude that when an action occurs that could incur an administrative infraction, culpability must be examined in order not to initiate a sanctioning procedure automatically. Intent is not necessary for the commission of an infraction; mere negligence is sufficient to hold the offender liable, as stated by the Constitutional Court: "beyond simple negligence, the facts cannot be sanctioned."

Also, the ruling of the National Court of 25/03/2003 indicates that "As for culpability, it must be said that generally this type of conduct does not have a malicious component, and most of them occur without malice or intent. Simple negligence or failure to comply with the duties imposed by law on those responsible for files or data processing to exercise due diligence to avoid, as in the case at hand, the processing of personal data without the consent of the affected person, which denotes an evident lack in the observance of those duties that clearly violate the principles and guarantees established in Organic Law 15/1999, of December 13 (LA LEY 4633/1999), on the Protection of Personal Data, specifically that of the consent of the affected party." The Supreme Court (STS 16/04/91 and STS 22/04/91) considers that from the culpability element it follows "that the action or omission, qualified as an administratively sanctionable infraction, must be, in any case, attributable to its author, by intent or imprudence, negligence, or inexcusable ignorance."

Furthermore, the National Court in matters of personal data protection has declared that "simple negligence or failure to comply with the duties imposed by law on those responsible for files or data processing to exercise due diligence is sufficient..." (SAN 26/06/01).

The ruling of the CJEU of 5/12/2023, case C-807/21 states in its point 75: "Consequently, it must be declared that Article 83 of the GDPR does not allow for the imposition of an administrative fine for an infraction covered in its paragraphs 4 to 6 without demonstrating that such infraction was committed intentionally or negligently by the data controller and that, therefore, culpability in the commission of

the infraction constitutes a requirement for the imposition of the fine."

In the present case, the respondent was aware that the requirement for COVID certification documentation applied only to certain sectors, and only for a certain period. The access policy to the MWC 22 facilities began to be planned well in advance, in the autumn of 2021, taking into account the perspective of health authorities, with sufficient time to assess all the variables affecting the risks of processing personal data for the rights and freedoms of the interested parties.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
94/96

It must be applied to any treatment, regardless of the type, and in this case with greater rigor concerning special data. The respondent should have known that vaccination was not mandatory. The respondent has acknowledged that in this case there is no law establishing this measure applicable to its sector, nor administrative provisions, recognizing that those issued in the context of Catalonia did not contemplate this situation. Despite this, it processed the health data of employees, which indicates a lack of diligence in considering the legitimizing basis of the treatments carried out, and the information regarding such collection, which constitutes and proves the culpability of the respondent as a deficient approach in its governance of data protection. Furthermore, the manner in which it undertook the treatment or its purpose does not preclude the consideration of such lack of diligence and unlawfulness.

Regarding the application of mitigating factors, it is considered that the purpose of the treatment operation should be taken into account, as the aim was to safeguard health, in line with the measures agreed upon by the health authority. However, although the purpose may be legitimate, it was not necessary and proportional, since, in this case, the risks of regulatory non-compliance and the impact that the measure could have on the affected individuals were not assessed.

It is also considered that it is not a professional in data processing. However, the application of the aggravating factor of 83.2.k) of the GDPR does not require this professionalism. The entity has been holding the event since 2006, which has been attended and continues to be attended by significant numbers of thousands of people, which implies a professionalized processing of personal data, for which it is required to exercise special diligence in complying with data protection legislation and the principle of accountability that requires the assessment of the risks involved in the processing of individuals' data, and the establishment of guarantees to ensure a high level of protection of their rights.

Therefore, based on the reasons put forward, there is no justification for the reduction of the sanctions. Thus, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on GSMA LIMITED with NIF N4004237F for the alleged infringement of the following articles of the GDPR

-9.2 of the GDPR in accordance with article 83.5.a) of the GDPR, and for the purposes of prescription classified as very serious in article 72.1.e) of the LOPDGDD, a fine of 300,000 euros.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
95/96

--6.1 of the GDPR, in accordance with Article 83.5.a) of the GDPR, and for the purposes of prescription classified as very serious under Article 72.1.b) of the LOPDGDD, with a fine of 200,000 euros.

-14 of the GDPR, in accordance with Article 83.5.b) of the GDPR, and for the purposes of prescription classified as very serious under Article 72.1.h) of the LOPDGDD, with a fine of 100,000 euros.

SECOND: NOTIFY this resolution to GSMA LIMITED and GSMC EVENT PROJECT MANAGEMENT, S.L.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of 29/07, in relation to Article 62 of Law 58/2003, of 17/12, by depositing the amount, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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